Trial Transcript

Case Number: CGC-21-594102
Date: April 22, 2025

In the matter of:

FRANCISCUS DYLAN ROSARIO v SUBHI ABDELHALIM, et al.

TRIAL

Day 10

CERTIFIED COPY

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IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO - UNLIMITED
BEFORE THE HONORABLE GARRETT L. WONG
DEPARTMENT 504

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

vs. Case No. CGC-21-594102

SUBHI ABDELHALIM;
INDIVIDUALLY, AND DBA
SONOMA LIQUOR, DOES
1 TO 50,

Defendants.
_____/

REPORTER'S TRANSCRIPT

TUESDAY, APRIL 22, 2025

PAGES 1 - 79

Location: San Francisco Superior Court
400 McAllister St., Dept 504
San Francisco, California 94102

APPEARANCES

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SESSIONS

PAGE

TUESDAY, APRIL 22, 2025

MORNING SESSION 3

April 22, 2025 San Francisco, California

PROCEEDINGS

THE COURT: Good morning, everyone. We are back in session in the matter of Rosario versus Abdelhalim. The record should reflect that all Jurors are present and all parties are present and Counsel.

And at this time, the Court is going to read the jury instructions to you on how to decide this case. Very well.

All right.

Let me just tell you that the way the instructions are set up, they are set up according to their assigned number in the instruction book and I am going to read them out of place because I think it makes more sense to you to read them in this order rather than to start off in fashion that the manual has given to us.

Frankly, I don't understand why they haven't revised that yet, but this has been a recurring issue now for several years.

In any event, let me begin with duties of the Judge and Jury. Members of the Jury, you've now heard all the evidence and you will hear the closing arguments of the parties.

It is my duty to instruct you on the law that applies in this case.

You must follow these instructions as well as those that I previously gave you.

You will have a copy of my instructions with you when you go to the Jury room to deliberate; in fact, we will probably have two copies for you.

It also says here I will provide each of you with your own copy of the instructions. That, we won't be able to do because it is just paper supply. Very well.

You must decide what the facts are. You must consider all the evidence and then decide what you think happened.

You must decide the facts based on the evidence admitted in this trial.

Please do not allow anything that happens outside this courtroom to affect your decision. Do not talk about this case or the people involved in it with anyone, including your family and persons living in your household, friends and co-workers, spiritual leaders, advisors or therapists.

Please do not do any research on your own or as a group. Do not use dictionaries or other reference materials.

These prohibitions on communications and research extend to all forms of electronic communications.

Do not use electronic devices or media such as a cell phone, a smart phone, PDA, computer, tablet device, the internet, any internet service, any text or instant messaging service, any internet chat room,

blog or web site, including social networking websites or on-line diaries, to send or to receive any information to or from anyone about this case or your experience as a juror until after you have been discharged from your Jury duty.

Please do not investigate the case or conduct any experiments, do not contact anyone to assist you, such as a family accountant, a doctor or a lawyer.

Please do not visit or view the scene of any event involved in this case.

If you happen to pass by the scene, please do not stop or investigate.

All jurors must see or hear the same evidence at the same time.

You must not let bias, sympathy, prejudice or public opinion influence your decision.

If you violate any of these prohibitions or communications in research, including prohibitions on electronic communications and research, you may be held in contempt of court or face other sanctions.

That means that you may have to serve time in jail, pay a fine or face other punishment for that violation.

I will now tell you the law that you must follow to reach your verdict.

You must follow the law exactly as I give it to you even if you disagree with it.

If the attorneys have said anything different

or if the parties have said anything different about what the law means, you must follow what I say.

In reaching your verdict, please do not guess what I think your verdict should be from something I may have said or done.

Please pay careful attention to all the instructions that I give you. All of the instructions are important because together they state the law that you will use in this case.

You must consider all of the instructions together.

After you have decided what the facts are, you may find that some instructions do not apply.

In that case, follow the instructions that do apply and use them together with the facts to reach your verdict.

If I repeat any ideas or rules of law during my instructions, that does not mean that these ideas or rules are more important than the others.

In addition, the order in which the instructions are given does not make any difference.

Insurance. You must not consider whether any of the parties in this case has insurance. The presence or absence of insurance is totally irrelevant.

You must decide this case based only on the law and the evidence.

Evidence. You must decide what the facts are

in this case only from the evidence you have seen or heard during the trial including any exhibits that I admit into evidence.

Sworn testimony, documents or anything else may be admitted into evidence.

You may not consider as evidence anything that you saw or heard when court was not in session, even something done or said by one of the parties, attorneys or witnesses.

What the attorneys -- or, rather -- the parties say during the trial is not evidence. In their opening statements and closing arguments, the parties talk to you about the law and the evidence.

What the parties say may help you understand the law and the evidence, but their statements and arguments are not evidence.

The parties' questions are not evidence. Only the witness's answers are evidence. You should not think that something is true just because a party's question suggested that it was true.

Each side has the right to object to evidence offered by the other side.

If I sustained an objection to a question ignore the question and do not guess as to why I sustained the objection.

If the witness did not answer you must not guess what he or she or they might have said.

If the witness already answered you must

ignore the answer.

Witnesses. A witness is a person who has knowledge related to this case. You will have to decide whether you believe each witness and how important each witness's testimony is to the case. You may believe all, part or none of a witness's testimony.

In deciding whether to believe a witness's testimony, you may consider among other factors the following -- and they list A through E, but they are not exclusive.

A: How well did the witness see, hear or otherwise sense what the witness described in Court?

B: How well did the witness remember and describe what happened?

C: How well did the witness look, act and speak while testifying?

D: Did the witness have any reason to say something that was not true? For example, did the witness show any bias or prejudice or have a personal relationship with any of the parties involved in the case or have a personal stake in how this case is decided?

And E: What was the witness's attitude toward this case or about giving testimony?

Sometimes a witness may say something that is not consistent with something else the witness said.

Sometimes different witnesses will give

different versions of what happened. People often forget things or make mistakes in what they remember.

Also, two people may see the same event but remember it differently.

You may consider these differences, but please do not decide the testimony is untrue just because it differs from other testimony; however, if you decide that a witness did not tell the truth about something important, you may choose not to believe anything that witness said; on the other hand, if you think a witness did not tell the truth about some things but told the truth about others, you may accept the part you think is true and ignore the rest.

Please do not make any decisions simply because there were more witnesses on one side than on the other.

If you believe it is true, the testimony of a single witness is enough to prove a fact.

You must not be biased in favor of or against any witness because of the witness's disability, gender, race, religion, ethnicity, sexual orientation, age, national origin or socioeconomic status.

Taking notes during the trial. If you have taken notes during the trial you may take your notebooks with you into the Jury room. You may use your notes only to help you remember what happened during the trial. Your independent recollection of the evidence should govern your verdict.

You should not allow yourself to be influenced by the notes of other jurors if those notes differ from what you remember.

At the end of the trial, your notes will be collected and destroyed.

This is called reading back of trial testimony in Jury room. Also known as a readback.

You may request in writing the trial testimony be read to you.

I will have the Court Reporter read the testimony to you. You may request that all or part of a witness's testimony be read.

Your request should be as specific as possible. It will be helpful if you can state: One, the name of the witness; two, the subject of the testimony you would like to have read; and three, the name of the attorney or attorneys or party asking the questions when the testimony was given.

Now, the Court Reporter is not permitted to talk with you when he is reading the testimony you have requested.

While the Court Reporter is reading testimony, you may not deliberate or discuss the case.

You may not ask the Court Reporter to read testimony that was not specifically mentioned in a written request.

If your notes differ from the testimony, you must accept the Court Reporter's record as accurate.

All right. Next, questions -- no, I am sorry.

Demonstrative evidence. During the trial materials have been shown to you to help explain testimony or other evidence in this case.

Some of these materials have been admitted into evidence and you will be able to review them during your deliberations.

Other materials have been shown to you during the trial but they have not been admitted into evidence.

You will not be able to review them during deliberations because they are not themselves evidence or proof of any facts; you may, however, consider the testimony given in connection with those materials.

Electronic evidence. Some exhibits that have been admitted into evidence will be provided to you electronically.

The equipment necessary to view these exhibits will be available to you in the Jury room.

Please do not use the equipment for any other purpose other than to review the electronic exhibits.

Do not use it to access the internet or any other source of information.

Please do not use it for any personal reason whatsoever including but not limited to reviewing E-mail, entertainment or engaging in social media.

If you need technical assistance or

additional equipment or supplies you may make your request by sending me a note through -- I think we will have a court Bailiff here, so should it be necessary for a technician to enter the Jury room, stop your deliberations until the technician has left.

Do not discuss with him or her or they or with each other any exhibit or any aspect of the case while the technician is present.

Please do not say anything to the technician other than to describe the technical problems or to request an instruction on how to operate the equipment.

You may request a paper copy of an exhibit received in evidence; one will be supplied, if possible.

Okay. All right. I will now proceed to the case itself.

This instruction is entitled: Obligation to prove more likely true than not true.

The parties must persuade you by the evidence presented in Court that what they are required to prove is more likely to be true than not true.

This is referred to as the burden of proof. After weighing all of the evidence, if you cannot decide that something is more likely to be true than not true, you must conclude that the party did not prove it.

You should consider all the evidence no

matter which party produced the evidence.

In criminal trials, the prosecution must prove that the Defendant is guilty beyond a reasonable doubt; but, in civil trials, such as this one, the party who is required to prove something need only prove that it is more likely to be true than not true.

Direct and indirect evidence. Evidence can come in many forms. It can be testimony about what someone saw or heard or smelled.

It can be an exhibit admitted into evidence. It can be someone's opinion.

Direct evidence can prove a fact by itself.

For example, if a witness testifies she saw a jet plane flying across the sky, that testimony is direct evidence that a plane flew across the sky.

Some evidence proves a fact indirectly; for example, a witness testifies that he saw only the white trail that jet planes often leave.

This indirect evidence is sometimes referred to as circumstantial evidence.

In either instance, the witness's testimony is evidence that a jet plane flew across the sky.

As far as the law is concerned, it makes no difference whether evidence is direct or indirect.

You may choose to believe or disbelieve either kind. Whether it is direct or indirect, you should give every piece of evidence whatever weight you think it deserves.

Next, the party having the power to produce better evidence.

You may consider the ability of each party to provide evidence. If a party provided weaker evidence when it could have provided stronger evidence, you may distrust the weaker evidence.

Failure to explain or deny evidence.

If a party failed to explain or deny evidence against him when he could reasonably be expected to have done so based on what he knew, you may consider his failure to explain or deny in evaluating that evidence.

It is up to you to decide the meaning and importance of the failure to explain or deny evidence against the party.

I am not sure this happened, but evidence was admitted for a limited purpose. During the trial, certain evidence was admitted for a limited purpose. I am not sure this instruction applies, but if it does, you may consider that evidence only for that purpose and for no other.

Use of interrogatories of a party.

Before trial, each party has the right to ask the other parties to answer written questions. These questions are called interrogatories.

The answers are also in writing and are given under oath. So you must consider the questions and answers that were read to you the same as if the

1 questions and answers had been given in Court.
2 Statements of a party opponent. A party may
3 offer into evidence any oral or written statement made
4 by an opposing party outside the courtroom.
5 When you evaluate evidence of a statement,
6 you must consider these questions; there are two:
7 One, do you believe that the party actually
8 made the statement?
9 If you do not believe that the party made the
10 statement, you may not consider the statement at all.
11 And two, if you believe that the statement
12 was made, do you believe it was recorded accurately?
13 You should view testimony about an oral
14 statement made by a party outside the courtroom with
15 caution.
16 Okay. We turn now to causes of action.
17 Negligence.
18 Franciscus Dylan Rosario claims that he was
19 harmed by Subhi Abdelhalim's negligence. To establish
20 this claim, Franciscus Dylan Rosario must prove all
21 the following, there are three elements:
22 One: That Subhi Abdelhalim was negligent.
23 Two: That Franciscus Dylan Rosario was
24 harmed.
25 And, three: That Subhi Abdelhalim 's
26 negligence was a substantial factor in causing
27 Franciscus Dylan Rosario's harm.
28 Basic standard of care.

Negligence is the failure to use reasonable care to prevent harm to one's self or to others.

A person can be negligent by acting or by failing to act.

A person is negligent if that person does something that a reasonably careful person would not do in the same situation or fails to do something that a reasonably careful person would do in the same situation.

You must decide how a reasonably careful person would have acted in Subhi Abdelhalim's situation.

Comparative negligence. Subhi Abdelhalim claims that Franciscus Dylan Rosario's own negligence contributed to his harm.

To succeed on his claim, Subhi Abdelhalim must prove both of the following:

One: That Franciscus Dylan Rosario was negligent.

And, Two: That Franciscus Dylan Rosario's negligence was a substantial factor in causing his harm.

If Subhi Abdelhalim includes the above, Franciscus Dylan Rosario's damages are reduced by your determination by the percentage of Franciscus Dylan Rosario's responsibility.

I will calculate the actual reduction.

Presumption of negligence, per se.

California Vehicle Code Section 21651 is entitled: Driving on the right side. And subdivision B states:

It is unlawful to drive any vehicle upon a highway except to the right of an intermittent barrier or dividing section which separates two or more opposing lanes of traffic. Except as otherwise provided in subdivision C, a violation of this subdivision is a misdemeanor.

If Subhi Abdelhalim proves, one: That Franciscus Dylan Rosario violated this law; and two: That the violation was a substantial factor in bringing about the harm, then you must find that Franciscus Dylan Rosario was negligent, unless you also find that the violation was excused.

If you find that Franciscus Dylan Rosario did not violate this law or that the violation was not a substantial factor in bringing about the harm or if you find that the violation was excused, then you must still decide whether Franciscus Dylan Rosario was negligent in light of the other instructions.

Causation. A substantial factor in causing harm is a factor that a reasonable person would have considered to have contributed to the harm.

It must be more than a remote or trivial factor. It does not have to be the only cause of the harm.

Conduct is not a substantial factor in

causing the harm if the same harm would have occurred without that conduct.

Sorry. Are we using 3960?

MR. ROSARIO: I believe it was struck from the record. Mr. Reporter would have that.

MS. NAVARATNASINGHAM: Yes, 3960 was removed, right.

MR. REYNA: Yeah.

THE COURT: All right. I wanted to be sure.

All right. I believe that that completes the instructions, unless I have missed any.

MR. REYNA: No.

MS. NAVARATNASINGHAM: No.

THE COURT: Very well. All right.

It is now the time for closing arguments.

Mr. Rosario has two opportunities to speak to you because he has the burden of proof in this matter.

So, Mr. Rosario, this is your opportunity to make your closing argument.

At this time, you will have the opportunity for rebuttal to the Defense closing argument, if you choose. You may begin.

MR. ROSARIO: Thank you, sir.

MS. NAVARATNASINGHAM: Your Honor, for housekeeping, are we having a time limit on closings?

THE COURT: I think a half an hour is more than enough for each.

Mr. Rosario, try and keep your remarks to a

half an hour. If you need to go over, I am not going to be unreasonable, but I will give you an opportunity to respond.

CLOSING ARGUMENTS

MR. ROSARIO: Everyone, thank you for making it again. I appreciate all of you being here.

THE COURT: You need to speak up a little, please.

MR. ROSARIO: I appreciate all of you being here to give me a chance to show you the case.

I am going to start here by beginning again from where I started, talking about the truth. It is important for us to tell the truth, and our candor, and from that, you know, as Judge Wong has clearly stated, about the 51 percent requirement or more likely than not.

So I am going to continuously ask that as we move along here.

I am going to ask you to use your eyes and your ears on the evidence that's provided to you. And this is very, very important.

Part of what you are going to be seeing are body cams and some 911 calls.

Those ones are, essentially, created at the time.

There is no what we call hearsay or interjection. Unfortunately, there is actually -- and we will get to that in a second -- but you are able to

see where myself -- and I refer to myself here as the victim -- I was hit by a truck from behind. We want to get that straight.

I have injuries, and my family has been there through the whole thing.

And when a person gets struck from behind, you have no option to avoid it.

And where we go from there, that is my physical location in the video, will show that I was in the crosswalk and that I was ejected onto the sidewalk.

The big contention that comes one of the people -- there are two simultaneous story lines that happen and I will outline them for you.

On one story line, thank goodness for the Defense providing this, I now know where the story line came from.

Officer Simmons used hearsay. He goes -- and Officer Simmons was quoted in the body of -- from Officer Thompson, she goes: Was he going this way?

And Officer Thompson clearly states this -- and the entire basis of me riding on the wrong side of the street in the bike lane was created at this moment -- it saysz; he was going this way.

He even said it. I asked him and he said -- that little phrase there means that Officer Simmons was going off of hearsay.

And then he says: Yeah, I was going this

way, is what Officer Simmons said I said.

Then Officer Simmons said I said: Against the bicycle side?

And he says that I said: There is no sign.

The reason I said there is no signs, ladies and gentlemen, is because I was in a crosswalk.

There are no signs or arrows when you are in a crosswalk. Officer Simmons transported me from the crosswalk, where you see my body on the crosswalk, in the sidewalk, and the scooter I have with me in my possession, suddenly he transports me seven or eight feet to the right and in the street in a one-lane and it was very convenient -- we will go into that -- he transports me from the sidewalk where my -- where the scooter and me are at, sending me into a bike lane, violating a directional code.

How did I move, if I injured myself? Or it is my contention I was struck. How did I get onto the sidewalk and into the crosswalk?

So what I want to tell you is that the police report, it was ripe with errors, left turn, right turn, a whole bunch of things were wrong, saying I had injuries on the left side, they are on the right side.

Officer Fernandez clearly stated it was completely full of hearsay. He didn't know where it came from.

And it looks to me that I now know thanks to the Defense outlining it for me exactly how it went

1 down.
2 Officer Simmons started repeating that. And
3 he was the senior officer on the scene.
4 And then what happens, all the junior, you
5 know, officers in his, what do you call it, crew,
6 unit, in his police unit, started repeating what he
7 said, and you can actually see it in the document, he
8 goes, yeah, he was going the wrong way.
9 Then all of a sudden all of them started
10 repeating it like a parrot.
11 The only one doing their job was Dr. Thompson
12 who actually did her job. She went over and collected
13 information from a eyewitness who said he saw
14 Mr. Abdelhalim strike me with a truck.
15 Then she goes: Wow, the scooter is right
16 there in the crosswalk. Mr. Rosario is on the
17 sidewalk.
18 When Officer Simmons says: Oh, he is going
19 the wrong way, she was like: He failed to yield.
20 Then the story changed because, of course, she won't
21 stand up against a very impressive lead sergeant
22 reporting.
23 So he established the scenario completely
24 based upon hearsay.
25 He said because he asked me, against the
26 bicycle sign, and -- essentially a question that was
27 based upon some form of conjecture -- I don't know --
28 he derived and piecemealed like a Frankenstein from

multiple different places, that I was suddenly riding in a bike lane.

And I always, being number one, have explicitly stated, they asked me questions like what about the bike lane. And it was going on.

The point that we have to remember is to use your eyes when you watch the video. Because I was extremely injured. I was fighting for my life, as I told you, when the officers arrived.

I wanted to get this out of the way because it seems to me even with the instructions and trying to establish some kind of narrative, that I caused my own injury.

They transported me without any evidence. They had no admission of it. They piecemealed it together, you could see it across multiple images and video, then established by making statements, then the rest of the officers parroted it.

So I will tear down that piece in a second.

I want you to use your eyes and your ears, listen to the 911 confession. You saw those and read those.

Look at me, the victim, my actual physical location for when all of the body cams arrived.

I was in a crosswalk and on the sidewalk. Even Abdelhalim said: Oh, he is on the sidewalk.

Again, they transported me into a bike lane saying I was in the -- going the wrong direction.

That is not the fact. I could challenge that very easily. It is very difficult after the fact. I had no idea that they were implying I was in the bike lane. I was like: Why am I going the wrong way in a crosswalk? They are both directions.

I couldn't imagine and I don't understand and I still don't understand how they can essentially see me physically in a crosswalk and say: Oh, you are going the wrong direction in a bike lane.

It is a bad call. As you know, the police report is full of errors. We will go into that in a second.

The driver's statement, Mr. Abdelhalim, are they credible?

You know, obviously, we all heard him state he called 911.

Then later on -- well, we knew that he denied for a long time he had any involvement.

When he heard the 911 statement, he clearly stated -- what he told 911 is untrue. He redacted that and his claim was -- was that me, the dying man on the sidewalk, scared him enough that he was so scared and terrified of the man dying on the street that he couldn't escape and he had to call 911 and implicate himself in something he never did, essentially implicating himself in the collision that he later told the police never happened.

So he clearly changes his story between the

911 call and when the officers arrived.

So the interesting part was there was a split in the narrative where the Defense is basing their foundation on.

They have one where you have, essentially, an erroneous and false narrative created by the police officers placing me in a bike, lane which was not true.

Then you have over here on the other side, you have Mr. Abdelhalim claiming no contact after his 911 call.

So the logic splits there. And what happens is that the Defense has been able to utilize both (inaudible) to defend against any liability or a fault in this matter, and it is totally logical.

I guess if I was in their shoes it works, but it is very difficult for me to overcome that.

But I am going to break it down for you each piece at a time. And remember what Officer Simmons says, his claim. Number one, this is the man who never used his body cam.

Why? Because there is actually no admission from me at all. He was standing over me. As I told you, I didn't even know who it was. Now we all know.

And thanks to the Defense for providing us the document that shows how he started saying it and the rest started parroting him.

The only one who actually did her job, the

woman on the scene who was logical and stepped through it, was Officer Thompson.

The rest of the guys, rank and file: Yes, sir. That is what we saw.

You can read it in the document.

Officer Thompson actually tried to stand up to Officer Simmons, but then he overrode her and said: Oh, he was going the wrong way.

Again, they have no evidence I was in a bike lane. They have hearsay. They have no images.

What you do have is video and images and multiple people placing me in the crosswalk and the sidewalk.

This whole claim that it was a bike lane is wrong. Even Officer Fernandez stated that. He didn't know where the statements came from. It is inadmissible because it is hearsay.

The police report itself is inadmissible itself. Mr. Wong stated that clearly.

I want you to use your common sense when it comes to obviousness as well, and the physical signs of my injury, the testimony of myself. And you could imagine the despair I have when I cannot afford medical experts and that my late and inaccurate filings were insufficient for me to get my actual doctors to come here.

I am not an attorney. A couple of you are. You can imagine for a guy who has never done that and

suffered from a lot of the different ailments that I have -- not to take that into account, but it is difficult to learn these types of things in just four months.

I have only been doing this for four months.

I got the evidence and was able to unpack it just in December and I was incapable of making a case until what I have now.

I knew by separating this, I can show at least the facts behind the collision and I will break it down for you.

There is also the physics of the auto collision which I am going to break down what the police claimed and I will show you why it doesn't work.

Simple, I will use squares and boxes.

Evan, will you help me with this?

This is Tehama there. Simple lines. Nothing complex. Everybody can see you. If you want to come over to see it, I can turn it a bit. If you'd like, you can sit up here and join us so you can see what is happening.

Up here there is two lanes going this direction and one lane going that direction.

MS. NAVARATNASINGHAM: Your Honor, we can't see.

MR. ROSARIO: You can join us. It is just a simple drawing of the intersection. We will do some

really simple logic.

Evan, can you put a dotted line here and then put a solid line here, put a solid line here and then put an arrow this direction here.

There is two lanes going this way and there is one lane going that way.

One would imagine there is a point right here and there is a point right about here.

MS. NAVARATNASINGHAM: Your Honor, I object to the extent that --

MR. ROSARIO: We are doing a simple diagram of the intersection.

The man says that he stopped and he found me on the sidewalk, all right?

This is what he said. This is still his statement till today. Of course he has a backup one, in case he is proven to have actually have hit me, then he will say, oh, you injured yourself.

It is a beautiful little Defense that he has put together that is not going to work, because I was pictured right here to be laying on the ground.

The scooter is right here (indicating). Now, what is happening right here across this blue line, this is a bike lane.

How did I end up here?

MS. NAVARATNASINGHAM: Objection, calls for expert testimony.

MR. ROSARIO: No. This is physics. This is

absolutely like Ping-Pong balls or billiard balls.

A person -- if he turned right, I would have ended up over here. If he had hit me going this way, how did I end up over here? Question.

That means if a vehicle is turning this way it would eject me in this direction.

So that is physics. You can't hide it. All right?

Now, Mr. Abdelhalim claims multiple times he gets confused between right and left, you can see that multiple times. He claims he turned this way. So if he had turned this way and I had ran into him, I ran into him -- again, we are not explaining how I have injury to my back --

MS. NAVARATNASINGHAM: Objection, Your Honor. It is not in evidence.

THE COURT: Well, Mr. Rosario, you can argue from --

MR. ROSARIO: I have feelings in my back.

THE COURT: Sir, I understand that, but you can only argue within what was stated or presented in the evidence.

MR. ROSARIO: Correct.

THE COURT: You can't speculate as to anything else that took place.

MR. ROSARIO: I am still suffering every day from my back. I was hit in my back, sir. If you get hit in your foot you can tell you are hit in your

foot; if you are hit in your back, you are hit in your back; There is no argument and I am declaring it.

The Defense wants to deny it 'cause they don't want you to know.

THE COURT: I am not talking about your back, sir. I am talking about the diagram.

MR. ROSARIO: Let me wrap this up. We are going to finish, Your Honor.

So I was in the photos right here, the scooter is right here. That is it. That is all I want you to look at.

The scooter is clearly in crosswalk, I am in the sidewalk. I was never in this bike lane. It was hearsay spread by Officer Simmons and it perpetuated through his team.

Everything else after that is just a perpetuation of that one single narrative.

Why would Officer Simmons do that? I won't speculate but I will say this one thing: They got out of there real quickly. And me being struck or falling off the scooter means they don't have to call the traffic unit, as Officer Fernandez said.

It is great they can wrap it up tidy, 20 minutes. The 20 minutes in their life and failure to investigate the scene cost me four years of my life and it prohibited my ability to be able to adjudicate and get this situation done.

The evidence, common sense, says:

Mr. Rosario would have ended up over here if he entered right.

I would have ended here.

MS. NAVARATNASINGHAM: Same objection, Your Honor.

THE COURT: All right.

MR. ROSARIO: So in the videos, you will see that Mr. Abdelhalim turned into the sunlight. He was driving into my --

MS. NAVARATNASINGHAM: Your Honor, objection, lacks foundation.

THE COURT: Sir, that is not in the evidence. You cannot argue --

MR. ROSARIO: I am arguing that he hit me from a different direction. He didn't prove he didn't turn left.

So I am giving you a fair analysis which I have a right to give to you which is logical.

MS. NAVARATNASINGHAM: Your Honor --

THE COURT: Mr. Rosario, you are not permitted to extrapolate from something that is not in the evidence.

MR. ROSARIO: It is in the evidence. He said that he turned left. It is in his own statement, sir.

THE COURT: That is right. And you are saying he is heading or making a left turn into Tehama.

You have an arrow there. You can't argue

that.

MR. ROSARIO: I also have an eyewitness who saw him turn and said that he came around the corner.

You can watch that in the video, too.

Regardless of them saying I didn't have the evidence, Mr. Abdelhalim said he turned left, the eyewitness said he turned left and my injuries and the location of where I landed said that he turned left, okay?

It is called preponderance of logic and reason, all right? And that is all you have to go from.

I apologize. You guys remember this, I am in pain every day. I am in a total terror for Judge Wong to have in his room.

I am overreactive quite often. I am upset, as you can imagine.

So I want you to please bear with me. My behavioral or patterns, this is not pathological, it is a physiological situation I have, all right?

So I cut off people all the time. I have a bad habit of that. It has really gotten worse since the time of the collision. It is a terrible thing to have, especially since I have to work with people.

Mr. Wong has tolerated me for long enough, all right?

So I want to make sure that you understand this. Many of the things in my outbursts are because

I don't know the system and I am trying my best.

I just know what feels right and wrong and I am very transparent with all of this.

I want to be authentic, I won't hide behind corporate robots. I want to look you in the eye.

This is logical. The explanation of a police officer putting me in a bike lane has no foundation, it is purely hearsay.

It gets perpetuated everywhere.

I will move along now to the evidence. And I am going to take that down, bring that down for you.

So Simmons, yeah, hearsay, he parrots, he operates an interrogation of a dying injured man on the sidewalk; clearly states to the team and the rest of them: Oh, yes, sir. He is the lieutenant on the scene, so they use his narrative.

He puts it together piecemeal. They claim that, Oh, Rosario -- and this is actually what all this effort is for because they never have me actually saying: Oh, I was riding in the bike lane, that is my fault.

They are trying to put it piecemeal by stating: Look, it was stated here by his attorney; look, it was stated over here.

MS. NAVARATNASINGHAM: What are you showing the Jury?

MR. ROSARIO: I am showing the Jury your exhibits, your exhibit list. I am showing your

exhibit list, how you guys had to collect information from a whole bunch of different locations to put it together.

Because a story they never got out of me directly at all because it didn't happen, I was never in that bike lane.

The Defense needs you to see it. That is why they grab it from all the other locations.

They say: Oh, look Mr. Rosario's attorney says it over here in his document. Mr. Rosario's interrogatory over here.

I told you I didn't even write those interrogatories.

The attorney that I had to boot because they continued to carry the story line -- you might say: Why does Rosario's attorney want to do that?

Well, the E-mail that she was very interested in (inaudible) was that my attorney demanded that I accept --

MS. NAVARATNASINGHAM: Objection, Your Honor.

MR. ROSARIO: Hold on a sec. You provided the E-mail. You provided the E-mail. I am repeating that.

THE COURT: Sir.

MR. ROSARIO: I have a right to explain the E-mail she provided for evidence, Your Honor, you told me that.

MS. NAVARATNASINGHAM: Your Honor -- yes,

objection.

MR. ROSARIO: Hold on. She placed an E-mail that I have a right to -- you told me --

THE COURT: Sir, this is improper during closing argument. Just move on, sir.

MR. ROSARIO: All right. So you can read the E-mail for yourself, why I fired my attorney, and this many of -- almost all of this hearsay she has placed in here, claims there is a complaint filed, hearsay.

Defendant's request for interrogatories, again, hearsay provided by my attorney.

Plaintiff's ex parte motion for leave to amend complaint.

That was my attempt to try and fix the error filed on December --

MS. NAVARATNASINGHAM: Objection, it is not in evidence, Your Honor.

MR. ROSARIO: You put it in there. It says Plaintiff's ex parte --

MS. NAVARATNASINGHAM: That is an exhibit binder that has several exhibits, but only a few were admitted into evidence.

THE COURT: You cannot refer to materials or exhibits that are not in evidence, sir.

MR. ROSARIO: I wasn't sure if you allowed these.

THE COURT: Try to focus on your case.

MR. ROSARIO: Moving along. Sorry. Again,

learning the rules.

There was exhibits provided to you of Officer DeLeon.

Let's get to what happened between Officer Orengo and Mr. Abdelhalim.

You can watch in Orengo's video that he assisted Mr. Abdelhalim in generating and fabricating the story narrative.

When the other officers approached Mr. Abdelhalim, Officer Orengo spoke for him, answered the question and continued to expound upon that.

You can see it on the video. I know that all of you are extremely intelligent. You can see what is going on.

Officer comes up: Hey, what is going on? Orengo jumps in and answers for him over and over again.

It seems Abdelhalim doesn't have the capacity to actually answer questions, not straight, or to answer anybody to their face. You can see, he doesn't have the capacity to look even most of you in the eye.

So we will go into Officer Simmons's credibility on this.

I am not attacking the man. I don't personally know him. What I am talking about is the way he approached it and how he used hearsay.

He used hearsay specifically in a way that allowed them to have a kind of an out.

And I don't think I necessarily need to go further into that other than the information that they collected from me when I was dying on the sidewalk is not admissible testimony.

So for them to claim, hey, Mr. Rosario claims he was in this bike lane, you can see, and you can see how they brought it together from different places. And I am like: Wow.

They kind of go: Hey, Rosario, what about bike lane, you know, the one over there?

I go the green one?

See, he said the green one.

They kept asking these leading questions until they said: See this, this one, this one and this one.

That is why the Defense is working so hard to get these out of evidence admissions that were written by other people in order to back up this story. It is completely hearsay, never did I say I was in that lane, never did I say was riding the wrong direction, because I know not to. It is against the law.

I know for a fact when you turn a corner and suddenly there is only one bike lane on the left coming towards you the only answer you have to do is to get off your scooter, off your bike, and walk it on the sidewalk because there is no bike lane on the other side.

So if any of you have been down 5th, there is

only a bike lane going away from downtown.

So if you come up 5th, the only way to get somewhere is, one, in their case, the presumption I was riding illegally, or number two, you dismount and kick scoot and walk it on the sidewalk and, in which case I was in a crosswalk. Again, they transported me over.

Let's move into the -- and that addresses the whole wrong direction.

Let's go into what my evidence has. 911 calls. There is a call that Subhi and I made together, he said that he made for me.

He said: Hey, I am calling for this guy, I just hit him.

And in his own words, I told my family and the police that he hit me. He then proceeded to say it two more times and then admit to a direct question that he had struck a pedestrian. He admitted that.

The body cams Thompson and Mr. Roseman had reported it on the sidewalk.

Mr. Roseman said: Hey, the man in the van -- it was kind of backwards, but, you get it. He says: The man in the van hit the guy --

MS. NAVARATNASINGHAM: Misstates the testimony.

MR. ROSARIO: It is in the audio. It is in the video, they can find it themselves.

THE COURT: Overruled.

MR. ROSARIO: Orengo and Subhi, you can see the conversation between them, filling in all the questions of Subhi.

This is what we call -- in most of America, we call this cronyism, the guy goes, hey, buddy, he goes, hey, man that is my store.

So we have a biased officer collecting the testimony of a potential perpetrator at the scene of an incident and they are buddy buddy.

They are like: Oh, man, that is my store. Yeah. They are best friends.

Orengo is filling in the questions for him left and right. You watch it with your own eyes, remember I want you to use it with your own eyes.

Don't take my word for it. Look at the videos, listen to the tone.

Here is the interesting thing I am still trying to figure out, Subhi is still claiming at the time when the officer comes up: No touch, no touch.

You can see my marks of the jacket on the vehicle.

Guess what happened? Right before he wraps up with Officer Orengo -- remember, the man is claiming no contact with the vehicle turns around, and Officer Orengo says: Hey man, accidents happen.

And Subhi goes: He is lucky he is not dead.

Why would Subhi be claiming that I am lucky I am not dead, unless something happened?

Now the man can't tell the story straight, flips on what he says to 911 and suddenly starts telling police officers I am lucky I am not dead.

What happened that means I should be lucky that I am not dead Subhi -- that is a good question -- unless he knows I was struck?

That is a really good answer to have to come up with how you explain when you say I am lucky I am not dead, because something happened.

He is just: He is lucky he is not dead.

For a man to claim that he found me like I am a crazy man on the sidewalk and he is scared of me, not touching me, to go from that to laughing and joking and finding it humorous that I was lucky that I am not dead.

MS. NAVARATNASINGHAM: Misstates the testimony.

MR. ROSARIO: No. You can see it with your own eyes. All right. I will let that one sit for you. Okay. There is a yield sign.

(Discussion off the record).

MS. NAVARATNASINGHAM: Excuse me. This is not Mr. Sobati's argument.

THE COURT: You have 10 minutes, sir.

MR. ROSARIO: So there is a yield sign. Duty of care to yield to bikes and pedestrians, all right?

There is a clearly marked yield sign for people who are turning.

And why is that? Why is it important to yield if there is a bike lane or a pedestrian lane?

Because -- guess what? Bicyclists are not obligated at that single intersection that is a stop; the vehicles turning down Tehama are.

So a bicyclist -- if a guy is on his bicycle -- some guys I could never keep up with, some guys are like Tour De France guys. I could never keep up with them.

But these guys know that they should be able to go in that lane, and it is a free shot, cars are supposed to stop; come to a full stop before they turn and you cross the bike lane, everybody knows that. Before you cross a bike lane, come to a full stop.

Those Tour De France guys, like, said -- could be moving 30 miles per hour.

You are not watching -- and, of course, I wouldn't advise to ride a bike like that.

All right. So the angle of approach. If this is 5th Street, I am going here, and if this is Tehama and he were fully stopped, he would see somebody there if he was paying attention.

If he was approaching this way, he would see a person in the intersection.

Again, also approaching from this direction, he would see a person in the intersection before he turned.

So he is postulating. The first one, he says

he never saw me -- because he turned and -- screaming on the ground.

But, by the way, if I get caught and the Court finds out I did hit him well, he was going in the wrong direction, but you can see that that narrative is inconsistent, it lacks foundation and is based upon hearsay.

So inconsistencies I already outlined.

What you have to do is you have to understand that his admission to lying to 911 and claims of duress here on the stand, he never mentioned that until I saw him here.

Effectively, you understand what he just said about me.

He said that I was violently threatening him while I am laying on the ground where he said he was scared for his life.

MS. NAVARATNASINGHAM: Misstates the testimony, misstates the evidence.

MR. ROSARIO: That is what he said. He was so scared he had to call 911.

MS. NAVARATNASINGHAM: Can I get my objection in?

MR. ROSARIO: Moving on. Failure to --

THE COURT: Yes.

Mr. Rosario, if there is an objection -- Mr. Rosario, if there is an objection, you need to stop. You need to pause so I can make the ruling.

MR. ROSARIO: Yes, sir.

THE COURT: All right. The objection is sustained and you need to move on.

MR. ROSARIO: Moving. Yes, sir.

THE COURT: All right. You have five minutes left.

MR. ROSARIO: Failure to report criminal collision with a pedestrian.

When the police arrived, he was obligated to tell them he hit me. He didn't tell them he hit me. And the 911 services did not know. They kept asking multiple times: What side did he hit him on? You see it on the video. He put my life at risk by not telling them what happened.

Had I died there and they found out he hit me, he would be in jail now because he did not report it.

He is very fortunate that this hasn't happened. But the moment you guys make the decision, who knows what happens after that?

This implies knowledge of a collision, so lucky he is not dead.

It implies he knows there was some kind of a collision that put my life at risk. All right.

Moving to the next one, I will go to the closing arguments here. We have 30 minutes.

THE COURT: No. You have five minutes.

MR. ROSARIO: Oh, yeah, correct. Five

minutes left on my 30.

What happened here, what the police did to me is a fundamental civil rights violation, of my rights and due process, for an officer to come up and fabricate the story that effectively eliminates my capacity to adjudicate fairly with organizations that would be able to handle compensating me.

That's a major problem, because what happened is the police and a public agency had limited my options as an individual.

My civil rights from the beginning have been violated in the due process.

The normal person would expect we would be able to go out and have clear and concise evidence that is before it, and the evidence that I put forward already, so far, far outweighs into preponderance; it is not hearsay, it is what you can see, what you can understand and it is real.

People don't suddenly teleport, like Star Trek, 10, 15 feet.

Where you see my body is where I was at the whole time when I got struck.

Putting me in the bike lane didn't exist.

The Defendant, his credibility on the 911 calls are shot.

So the admissions that they claimed that I made in the complaint and in these interrogatories, again, hearsay written by my former attorney.

It implies that the Defendant's negligence was justified.

Subhi Abdelhalim went through that intersection. This is a very important one. This is what establishes when a person is negligent, they have a duty to care.

The reason you are supposed to go slow through the intersection -- he was going fast enough to cause such severe injury that I almost died.

So here is the deal. The reason you are supposed to go slow is because, you know, there might be a child, or if it is foggy you won't hit somebody at such a rate that could kill them, especially when you are turning into the sun. Watch the video.

Mr. Abdelhalim came around that corner way too fast, that he put my life at risk.

MS. NAVARATNASINGHAM: Objection, lacks of foundation. There is no evidence.

THE COURT: Sustained.

MR. ROSARIO: Actually, there is. The break in my back is the evidence. You have to understand I was also ejected ten feet down the sidewalk. If you understand, their narrative doesn't align with mine. But the physical evidence, the video evidence backs up my story.

The eyewitnesss back up my story. My own testimony backs up the story. My visits and declaration of where I went to the hospital backs up

my story.

His own confession to 911 backs up my story.

The woman who drives by and sees that I am on the sidewalk -- so we have Subhi saying I am on the sidewalk, the woman who calls 911 saying I am on the sidewalk, Roseman says I am on the sidewalk and me saying I am on the sidewalk.

The only one was Officer Simmons who comes over saying guess what this guy is riding in a bike lane I can get out of here quick, so I can say he is breaking the law. Easy out. Let's go have lunch.

Also, Officer Simmons also knew if I was hit, he had to call the traffic unit down.

MS. NAVARATNASINGHAM: This calls for speculation. None of this is in evidence.

THE COURT: Sustained. The Jury will disregard the arguments.

MR. ROSARIO: All right. The officer's conversation --

THE COURT: You have two minutes, sir.

MR. ROSARIO: The police report by the officers, full of errors. Officer Fernandez already said the statements in there and the disclosures were hearsay and that they lacked any evidentiary backing, and they have Mr. Abdelhalim taking two different directions. Right there, 15 minutes of their time, scribble, scribble, scribble. Even Thompson said it would be doodles.

They treated my life-altering injury with a callous disregard that -- I would expect better professionalism from the officers with a badge.

If any of you were hit, I would want the same thing for you. Think about that.

The final thing I have to say here is that we have to send a very clear message. Is it okay for people -- anybody, not saying Abdelhalim -- Mr. Abdelhalim did this -- but if this goes through, effectively, drivers could jump out saying he was in the bike lane, it gives him a great out to declare it.

And if there was no other witness you could spin the body around and go he was going against the grain of traffic.

As I illustrated, if I am here walking with my daughter on her tricycle, effectively, is what they are saying, if I am walking with my granddaughter on a tricycle and a car comes through and kills us both, essentially, they are guilty for killing me, but because my granddaughter was on a tricycle, in their words, my granddaughter caused her own death.

That is the logic disclosed. And I am hoping that as a Jury that this becomes something the City is going to address because it is a pretty severe loophole that somebody can sit there saying they are going the wrong way and no fault, all right?

THE COURT: Time.

MR. ROSARIO: All right. Thank you all.

THE COURT: You will have rebuttal, 10 minutes.

MR. ROSARIO: Thank you.

THE COURT: All right. Let's take our break.

All right. Let's be back here at 11:10 for argument. Remember not to form or express any opinions about this case, thank you.

(Short recess).

THE CLERK: Please come to order. Department 504 is back in session.

(Whereupon, the Jury entered the courtroom).

THE COURT: All right. We are back in session in the matter of Rosario versus Abdelhalim.

The record should reflect all jurors are present, all parties are present with Counsel.

And, Miss Navaratnasingham, would you like to give your closing argument, please?

MS. NAVARATNASINGHAM: Yes. Thank you, Your Honor.

CLOSING ARGUMENTS

MS. NAVARATNASINGHAM: Good morning. Mr. Rosario started this case, and again, today, reiterated the importance of candor and how people shouldn't change their stories. However, as you've seen from the evidence, it is Mr. Rosario who has not been candid.

It is Mr. Rosario who has changed his story.

First he claims that he was pushing or kick scooting an inoperable Lime scooter.

You saw from his complaint that was filed four years ago and from discovery responses that were served in December of 2021 --

MR. ROSARIO: Objection hearsay.

THE COURT: Overruled.

MS. NAVARATNASINGHAM: -- that Mr. Rosario admits to riding a Lime scooter.

In fact, you saw on body cam footage where Mr. Rosario himself told officers that: I was riding a Lime scooter going five to ten miles per hour.

It has been four years and there has not been any changes made to Mr. Rosario's complaint where he admits to riding a Lime scooter.

Why does Mr. Rosario need to change his story?

He needs you to believe that he was --

MR. ROSARIO: Objection, speculation.

THE COURT: Overruled. This is improper, sir.

MR. ROSARIO: Oh, what she is doing or what I am doing?

THE COURT: What you are doing.

MR. ROSARIO: Okay.

THE COURT: If you believe she misstates the evidence, you may raise an objection, as she did with you.

MR. ROSARIO: Or speculation.

THE COURT: Speculation, you can make whatever objections you believe are appropriate and in good faith; however, you need to allow her to make her statement just as she did with you.

MR. ROSARIO: Okay.

MS. NAVARATNASINGHAM: Thank you.

Why would Mr. Rosario need to change his story?

It is because he needs you to believe that he was a pedestrian pushing an inoperable scooter so that he is not in violation of the Vehicle Code.

Second, Mr. Rosario told you that he lost consciousness. You saw body cam footage yourself, the first video we showed you where Mr. Rosario very clearly tells officers that he did not lose consciousness.

Third, Mr. Rosario tells you that this was a hit and run. He presented a 911 call from an unidentified woman where she says: It might be a hit and run, I don't know.

The dispatcher in that same 911 call says: Somebody already called this incident in.

The person that already called that incident in was my client.

For there to be a hit and run someone must flee the scene.

You saw body cam footage and you know that my

client made a 911 call. You saw body cam footage of my client at the scene cooperating with police.

This is not a hit and run.

Fourth, Mr. Rosario references Dustin Roseman.

You saw for yourself and you heard Officer Thompson say that she interviewed Mr. Rosemont and that he was very intoxicated and didn't know what happened.

Fifth, Mr. Rosario argues that there is a scuff on my client's vehicle.

There is absolutely no evidence that that scuff was caused as a result of this incident or that it is related to Mr. Rosario's leather jacket.

There is no evidence before you of that. The scuff could have been on my client's vehicle before the incident.

Mr. Rosario had an opportunity to produce that photograph to Mr. Fernandez and inquire of him. He didn't do that.

He also had an opportunity to show that photograph to my client and ask him about it. He chose not to do that.

The only evidence before you is that both Officer Fernandez and my client testified that there was no damage to my client's vehicle as a result of this incident.

All of the evidence presented establishes

that Plaintiff was at fault for causing this accident.

Plaintiff called Officer Fernandez to the stand in his case.

Officer Fernandez testified that Plaintiff was traveling the wrong way; that he was at fault; that he violated the Vehicle Code and that he caused his own injuries.

And, in fact, Officer Fernandez testified that the only reason he didn't cite the Plaintiff was because he caused his own injuries.

Plaintiff himself got on the stand and testified and actually reiterated multiple times in his closing today that he was told at the scene multiple times that he was at fault for causing this accident.

You saw body cam footage. Mr. Rosario argued it is hearsay but it is not hearsay when you have the body cam footage of Mr. Rosario himself telling officers he was traveling the wrong way in the green lane. That is on the video.

You saw footage of five different San Francisco Police Department officers conducting an investigation and all determining that Plaintiff was going the wrong way, that it caused the subject incident and that he caused his own injuries.

In fact, you heard Officer Thompson say in the body cam footage: Well, no wonder he didn't see him -- that is, my client -- well, no wonder he didn't

1 see him, it is because he was going the wrong way.
2 As to causation, Mr. Rosario said that he
3 could not afford to hire experts. But on Wednesday,
4 he told you that at the time of the incident he had a
5 business making millions of dollars.
6 In fact, I think he told you that he wasn't
7 doing this for the money and that he could get a job
8 making very, very good money.
9 You don't have to hire experts. You can call
10 your own doctor to testify.
11 We have not heard any testimony from any
12 doctor in this case.
13 As the Judge explained, we are here to
14 determine liability and causation. Only if you
15 determine that my client was negligent, then we start
16 a second trial on damages.
17 All of the evidence shows that it is more
18 likely than not that Mr. Rosario's negligence caused
19 this accident.
20 Mr. Rosario argues that the SFPD is involved
21 in a conspiracy, the EMTs are involved in a
22 conspiracy.
23 You heard a letter, and you will see it back
24 in the Jury room, from Mr. Rosario's own lawyer, the
25 Dolan Law Firm, telling him that -- his own attorney
26 telling him that they could not in good conscious put
27 him on the stand to testify before you under oath.
28 In response, Mr. Rosario claims that the

Dolan Law Firm is conspiring against him.

Plaintiff has tried to paint my client as a liar.

My client is not a liar. My client runs a small market here in San Francisco and has run that market for 45 years.

My client was scared and confused of Mr. Rosario at the time of the incident at the scene.

He claims that he asked my client to call police for 15 minutes.

But in that time, Mr. Rosario called his sister and an employee, not 911.

He claims that he felt like he was dying at the scene but he refused ambulance transportation to the hospital.

As I stated before, this case is simple. My client checked his mirrors, it was clear. He made a legal right turn.

It is more likely than not based on the preponderance of the evidence that Plaintiff was traveling the wrong way, he failed to yield to my client who was completing his turn, it was more likely than not that Plaintiff was negligent and caused his own injuries.

If after hearing all of the evidence you still don't know who was negligent, then that means that Mr. Rosario did not meet his burden of proof and that it cannot be found that my client was negligent.

We have been together for six days and I just want to take this opportunity to thank you. You've been away from your work and your daily lives to be here with us today and I just thank you very much. We really appreciate your participation.

THE COURT: Thank you, Counsel.

You now have an opportunity to rebuttal. I will limit it to 10 minutes. You should be done by 11:35, sir.

CLOSING REBUTTAL ARGUMENT

MR. ROSARIO: Thanking the Defense for pointing out something that I wanted to make sure that all of you would remember.

It is that my former attorney had concealed the 911 record from me, and in order for them to ensure that I would not go to trial, they made sure I didn't see it, because the moment that anybody that was seeing an actual confession would say no way, we are going to trial.

It was absolutely in the interest of my lawyer for me to settle out of court because anybody who says, wow, you got a confession, there is a body cam, let's go to trial, we will win. Most people would think that.

It was the absolute interest of my attorney's to hide that.

Dolan Law Firm, unfortunately, gets a lot of

wrongful deaths. So if you get a collision, you kind of get put on the back burner. I believe that is what happened there. So we can all understand why the narrative changed, because Dolan was refusing to do that for four years.

We get down here, they were saying: You were riding the wrong way in the lane.

I say: Excuse me, inaccurate.

Officers came in. They had provided no evidence of that. They piecemeal, like I said, together.

They asked me a number of loaded questions about the green lane or a bike lane but never did they say: Mr. Rosario, were you riding in the bike lane the wrong direction? No, they didn't say that.

And it is interesting enough that they hovered around me for so long and continued to grill me and interrogat me to try to get these little pieces out which gives the Defense a great way of piecing it together.

Regardless of whether the police officer said I said it, I had been severely struck, and if any of you could see the condition I was in, unless somebody would sit there and say they believe I was faking it, you would imagine that somebody like me wants to just say whatever the cops want you -- you know, get away from me. I think I made that statement already.

So consciousness. A person doesn't know

whether they lose conscience or not. That is a fact. If I was standing right here and I lost consciousness for two seconds --

MS. NAVARATNASINGHAM: Objection, calls for speculation, calls for expert opinion.

THE COURT: Overruled.

MR. ROSARIO: I am an expert in and -- artificial intelligence and cognitive neuroscience systems and I can tell you people do not recall a blackout.

If it happens just over a short few seconds, if you get blacked out, you wake up later in the day, you go: Oh, well, I blacked out suddenly, it is dark.

But in a few seconds, it is impossible -- it is impossible for a person to know whether they lose consciousness or not in a very short period of time.

Dustin Roseman, he might have been intoxicated, but that argument says that if a guy stabs somebody in a bar full of people who have been drinking beer, that none of them are allowed to tell their testimony.

So suddenly a cop comes in, all right: What happened?

Oh, that guy got stabbed and everybody has been drinking.

Well, sorry, everybody, none of your testimonies work because you have been drinking beer.

That line of reasoning doesn't work. The

testimony is the testimony.

The person didn't have time to explain what he saw. He said: That man in the van hit the guy who was laying on the ground. Clear as day.

The scuff on the vehicle, oh, there is dirt. Oh, how convenient, right at the height of where Mr. Rosario's back is at. All right.

Actually, let's correct this. Officer Fernandez clearly stated that everything -- you heard him. Everything in there was hearsay because he wasn't there at the scene.

He got the messages. And remember this: He got the message from several other officers who clearly stated that -- he goes: I wasn't even there.

His body cam, you will see, doesn't even show him at the scene. And the reason I didn't ask Officer Fernandez about the mark on the vehicle, the Defendant had already left because Officer Orengo had excused him, and by the time Officer Fernandez started recording the van was already gone.

This happened over a period of 20 minutes, folks. They wanted to get in there and get out. There was no legitimate investigation.

And I am not attacking that there was a conspiracy.

What I am saying is there were a whole bunch of people who showed up and there was a predisposition that there was some -- I don't know whatever he

thought I was.

Maybe he thought I was an indigent person living on street and they callously disregard the fact that he hit a human being and pass if off, and go here is five bucks, buddy.

That is what happened with this guy. If he doesn't like it, you don't like that --

MS. NAVARATNASINGHAM: Objection, do not direct anything to my client.

THE COURT: Sustained.

MR. ROSARIO: Don't laugh at me.

THE COURT: Make your rebuttal argument, sir.

MR. ROSARIO: All right. So saying I am going the wrong way, you guys can't here him snickering at me, me going the wrong way.

Number one, there is no wrong way in a crosswalk. There are always two ways. You guys can see the video, you can see where my body is at. You can see I was on the sidewalk. He said I was on the sidewalk. We already know I was on the sidewalk.

How I suddenly get transported from a sidewalk where I physically was at into a story by Officer Simmons that suddenly I am in a one-way bicycle lane with no evidence, they have no video camera, no eyewitnesses, they purely have it pieced together, a narrative that fits their ability to get out of there quickly. And, of course, if you are going the wrong way, you fall over, we don't have to

deal with it, we don't have to call the traffic collision people.

So we all understand the human nature. People want to get out of these situations with the least amount of effort.

Nobody wants to have to call in a traffic collision group. They wanted to get in there and out of there and they were out of there in less than 25 minutes.

So tack on the causation that is really where they are at. They believe that by inverting his story now with claims of scared and he is in danger was going to give him an opportunity to do that, to say that there was nothing happening, all right?

The man should have told the truth. He told the truth when he started. Then he switched the narrative so he can say there is no bacon, so he can get out of there, he can essentially establish that he had done nothing wrong.

My life was forever changed by his lies, by his callous disregard, his inability to slow down like he should have when he approached that intersection.

Everybody crossing through an intersection needs to be going slow enough that if a child was on a bicycle, if you bump into them you don't hurt them or kill them, seriously.

What we know is he hit me hard enough to cause a life threatening injury, all right?

And that right there alone is the only evidence you need to show that he was faulty. Regardless if I was doing jumping jacks or spinning around like a whirling dervish in the middle of the intersection, he is not allowed to go into that intersection at a speed that can injury somebody, all right?

They have hearsay from an officer saying I am going the wrong way. Again, hearsay. What we know is what you see in the video I was hit from behind and I was ejected on to the sidewalk in his own words.

MS. NAVARATNASINGHAM: This is not in evidence. Objection.

MR. ROSARIO: The evidence is his own words.

THE COURT: Sustained. Sir, just confine your remarks to the evidence presented to the jurors.

MR. ROSARIO: All right. The last thing is that they claim I refused 911. That is inaccurate.

I got in there to 911 and they said: Mr. Rosario, there is nothing we can do for a couple of cracked ribs.

I asked them: What is the condition at the hospital?

They said: It is full of people dying from COVID.

I said: You know what? I am going to go home and check this out.

By the time I got in to get the X-ray the

next morning -- my wife was with me, beautiful Mrs. Rosario took me in -- do you know what they said?

I can't say it because that is hearsay, remember. But I tell you this: I had to get my butt to an emergency room because I only had so long to live. I was going to fall into a coma and die.

And that is not something that can be caused by just: Oh, I was going so slow -- his own words -- so slow through the intersection.

Oh, you know -- as his own words he is lucky I didn't die. He is lucky I didn't die.

Why he thinks that I am lucky that I didn't die I don't know, but you can watch and you can hear the words.

Listen to the story of the police officers, how Simmons constructs the story then infects the rest of his police unit.

I didn't say there was a conspiracy, this is the natural order of human herd mentality. The alpha male always establishes the story or the alpha female, the alpha in the group establishes a story and then it perpetuate across the group.

Common sense dictates that when a man starts off saying "he says," "he said," that is the foundation of hearsay. There is no foundation there. Hearsay is not usable in this courtroom nor can you blame me for something he claims I said while I was laying there dying on the ground.

What you can do is you can look at the facts. You can look at me, you can hear my testimony, which is first-hand testimony.

You can see the firsthand testimony of the person in the video. You can hear the firsthand testimony of the person calling, all of them placing me in the crosswalk and on the sidewalk.

You can hear his own testimony placing me in the crosswalk and on the sidewalk.

No matter what the officers tried to manufacture when they get there, so they can get out without having to call traffic, is irrelevant.

What you have to look at is what you see. We all know police reports can be wrong. We all know the officers can have a different thing.

And I appreciate what the officers did that day. I do not appreciate them failing to do and -- bring in a traffic unit and get a proper investigation.

But if I was in their shoes, and from the information that they had at hand, I can understand why they went there; but it is inaccurate. That is not the truth. And that is why you people, the amazing arbiters of truth, are able to see these facts that I presented before you.

I want to again tell you how much I appreciate you, my family, my team. We are -- you know, I am a bumbling fool when it comes to the law,

absolutely, don't even know what I am doing.

But I am telling you the one thing that I know that is the courts are designed for people like me to get fair adjudication.

I did have a (inaudible) empire and I am about to restart it again, all right, even without the money that I have lost over the time.

What I do know is that, like I said, Mr. Wong has tolerated me long enough.

I do not know what I am doing and I have no intention to continue doing this ever and I want to stay out of here because you will probably kick my butt out of the courtroom if he sees me again.

What I want to tell you is that I appreciate everything he has done. I do not appreciate some of the tactics the Defense has used but I understand what they are doing. They are trying to do their job to defend their client the best they can.

What I want to tell you is I started this off with the transparency that I have, I have explained every single objection she has stated, I have explained it the best I can based upon the evidence she put forward.

There are reasonable things there. Like I said, it is not a conspiracy, it is human nature what the police did.

I am not saying they are out to get me or the Fire Department is out to get me. They are doing

naturally what guys do who want to get out of the situation there is no apparent wrong.

The guy is: Oh, he is ready to go with his friend to go get an x-ray. They won't make a big deal.

Of course, I was upset the way the police officers were treating me, but it does not mean that I believe there was a conspiracy.

What I do know is when you watch the video between Officer Orengo and the Defendant himself, you will see that Officer Orengo is filling in the questions and filling in the answers for the man.

So I will leave this again for you. I understand what the Defense is trying to accomplish and get to you, the hearsay is what you have to be watching for.

Did Mr. Rosario make these direct admissions? Did they piece it together that they do those things but that is not the main issue?

Did he go through that intersection too fast? That had he been going slower -- which was the duty of care under the law -- would any one of us have been injured, seriously?

MS. NAVARATNASINGHAM: Objection, Your Honor.

THE COURT: All right. Mr. Rosario, thank you.

MR. ROSARIO: Thank you. Thank you guys.

THE COURT: The objection is overruled.

MR. ROSARIO: I appreciate you.

THE COURT: Members of the Jury, we have a couple more instructions.

Just so you know, I have handwritten -- I finally handwrite the numbers in so we can keep track of what instructions you have in the Jury room.

All right. So the last couple instructions here are entitled -- the first one is entitled: Predeliberation Instructions.

When you go to the Jury room, the first thing you should do is to choose a presiding juror.

The presiding juror should see to it that your discussions are orderly and that everyone has a fair chance to be heard.

At one time, they were called forepersons but now this is the term we use.

It is your duty to talk with one another in the Jury room and to consider the views of all the jurors.

Each of you must decide the case for yourself but only after you have considered the evidence with the other members of the Jury.

Feel free to change your mind if you are convinced that your position should be different. You should all try to agree but do not give up your honest beliefs just because the others think differently.

Please do not state your opinions too strongly at the beginning of your deliberations or

immediately announce how you intend to vote, because it may interfere with open discussion.

Keep an open mind so you and your fellow jurors can easily share ideas about the case.

You should use your common sense and experience in deciding whether the testimony is true and accurate; however, during your deliberations, do not make any statements or provide any information to other jurors based on any special training or unique personal experiences that you may have had related to the matters involved in this case.

What you may know or have learned through your training or experience is not part of the evidence received in this case.

Sometimes jurors disagree or have questions about the evidence or about what the witnesses said in their testimony.

If that happens, you may ask to have testimony read back to you or ask to see any exhibits admitted into evidence that have not already been provided to you.

Also, jurors may need further explanation about the laws that apply to the case.

If this happens during your discussions, write down your questions and give them to the Court attendant, or in this instance, it would be the Bailiff.

I will talk with the parties before I answer,

so it may take some time.

You should continue your deliberations while you wait for my answer. I will do my best to answer them.

When you write me a note, do not -- please do not tell me how you voted on an issue until I ask for this information in open court.

Your decision must be based on your personal evaluation of the evidence presented in this case.

Each of you may be asked in open court how you voted on each question and I will explain to you in a moment how that will work.

And while I know you would not do this, I am required to advise you that you must not base your decision on chance, such as a flip of a coin.

If you decide to award damages, you may not agree in advance to simply add up the amounts each juror thinks is right and then without deliberation make the average your verdict.

Of course we won't be considering damages in this phase of the trial. It is only causation and liability.

You may take breaks, but do not discuss this case with anyone including each other until all of you are back in the Jury room. And, in fact, what I am going to do is I am going to strike the language about damages.

All right. So the other thing that is going

to happen is I am going to give you a special verdict form.

The special verdict form has questions you must answer.

I have already instructed you on the law that you are to use in answering these questions.

You must follow my instructions and the forms carefully.

You must consider each question separately.

Although you may discuss the evidence and the issues to be decided in any order, you must answer the questions on the verdict form in the order they appear.

After you answer a question, the form tells you what to do next.

At least nine of you must agree on an answer before you can move on to the next question. However, the same nine or more people do not have to agree on each answer.

All 12 of you must deliberate on and answer each question regardless of how you voted on any earlier question.

Unless the verdict form tells all 12 jurors to stop and answer no further questions, every juror must deliberate and vote on all of the remaining questions.

When you have finished filling out the form, the presiding juror must write the date and sign at

the bottom and then notify the Bailiff.

Now, in that regard, we have what is called polling the Jury.

After your verdict is read in open court, you may be asked individually to indicate whether the verdict expresses your personal vote.

This is referred to as polling the Jury and it is done to ensure that at least nine jurors have agreed to each decision.

The verdict form that you will receive asks you to answer several questions; again, you must vote separately on each question; although nine or more jurors must agree on each answer, it does not have to be the same nine for each answer; therefore, it is important for each of you to remember how you have voted on each question so that if the Jury is polled, each of you will be able to answer accurately about how you voted.

And what is going to happen is we will have an original verdict form in white and then I will ask Kimberly what color will be the polling forms that we are going have the jurors use.

THE CLERK: They are green.

THE COURT: They are green. Okay. So we will have green forms.

So each one of you should mark on the back, as you have done with the other transcripts and so forth, your number on the back so that they -- if they

get shuffled, you will have some way of identifying which form and which transcript is yours. All right.

Any questions? All right. Yes, Ma'am.

A VOICE: What about the alternates?

THE COURT: We will tell you in a moment here.

So to that end, the Jury will soon begin deliberating. And this is the ultimate juror instruction.

But you are still alternate jurors and bound by my earlier instructions about your conduct.

Until the Jury is discharged, please do not talk about the case, about any of the people or any subject involved in it with anyone, not even your family and friends and not even with each other.

Do not have any contact with the deliberating jurors and do not decide how you would vote if you were deliberating.

Do not form or express an opinion about the issues in this case unless you are substituted for one of the deliberating jurors.

As a matter of custom, the reason I ask for your mailing addresses is so that I can write to you a thank you note.

It is not for the purpose of sending you a survey -- and I know how much we all love surveys -- but it is a thank you note. And when we call you, we will leave a message or we will tell you what the

result of the verdict was.

It may mean that you will be called back in to adjudicate a second phase.

So you are not completely released yet.

There is a damages phase that may follow the first phase in this case.

So the three of you, I think, that are sitting here in seats 13, 14 and 15, know that you may very well be called back but we will give you instructions.

So if anyone asks you at home, family, at work or otherwise, let them know you are still on Jury duty and it is just a brief pause in the proceedings until you hear otherwise from the Court.

Very well. So you are excused for now.

Remember not to form or express any opinions about this matter to anyone, and we will be back with you one way or the other. Thank you very much.

A VOICE: Thank you.

THE COURT: Thank you for your service.

A VOICE: Do we leave our stuff?

THE COURT: You may leave your notebooks there in the event we have a second phase of the Jury trial.

A VOICE: Thank you.

THE COURT: Thank you.

We will have the Bailiff sworn now.

(Whereupon, the Bailiff was sworn to take

charge of the Jury).

THE COURT: All right. This is your Bailiff. He is going to escort you to the Jury deliberation room and, of course, we will have enough time for lunch and then it is your call about how long you want to have lunch and when you want to come back.

He will give you instructions about how to manage all that, but it is really up to you now. All right?

Any questions? Why don't you take your notebooks now so you don't have to come back to the courtroom.

Take your things with you.

A VOICE: So he will escort us and decide if we want to go to lunch or not?

THE COURT: Yes, he will instruct you. He is a pro at this.

(Whereupon, the Jury was excused from the courtroom to begin their deliberations).

THE COURT: All right. The Jury has been excused.

I am going to number the Jury instructions.

I didn't provide the civil trial guidance in the order in which I was supposed to have the instructions and I recognized, after reviewing them this morning, that you gave me the numerical form in accordance with the California Civil Jury Instructions.

But in any event, I am going to number the pages and then we will give you copies of that.

MS. NAVARATNASINGHAM: Thank you. I apologize for that, Your Honor.

THE COURT: Okay. Yes?

MS. NAVARATNASINGHAM: Yes. There was another matter with reference to exhibits. I had previously mentioned this with the clerk.

Madam Clerk provided two lists of exhibits.

And in the Plaintiff's exhibit list, Exhibit No. 28, which was -- were not admitted yesterday, and it is listed here as admitted yesterday. It is Plaintiff's Exhibit 28.

THE CLERK: Can I see it?

MS. NAVARATNASINGHAM: Absolutely. That was not admitted into evidence.

THE CLERK: It was not.

MS. NAVARATNASINGHAM: That is the one where he didn't have the transcript for the Jury and the Court excluded it.

THE CLERK: Oh, okay.

MS. NAVARATNASINGHAM: The other issue that I raised with the clerk this morning is it appeared from how the videos were being shown by the Plaintiff that he was just fast-forwarding through the videos and they weren't edited clips.

So we wondered how that would get submitted to the Jury because only brief clips were shown and

admitted at trial.

Ours, the clips we showed, that is all that they are getting.

THE COURT: Mr. Rosario, you were supposed to edit these video recordings before submission to the Jury.

How is that going to be accomplished? If you don't do it, I won't let them in.

MR. ROSARIO: None of the videos?

THE COURT: Unless you have them properly edited --

MR. ROSARIO: Yes, Your Honor. The Defense got -- sent some that were actually -- we found some instances where the mention of the thing was already established.

We can have them reformatted again and altered to make sure it is compliant.

We didn't know if they were all going to be added in. And it is a lot -- it was a little bit of work.

What I can do is we can provide that for you here by, let's say, 1:30. We can have an -- edited versions for most of those.

THE COURT: Well, the edited video clips that you prepared, you submit to Defense counsel for their review.

MR. ROSARIO: Right.

THE COURT: Not to the Court. It is for them

to review. If there is a dispute, I will resolve it, but it is between the parties. And if it is not done to their satisfaction, then you need to have the Court resolve the issue, I will.

But I think you should have those video clips prepared over the lunch hour so that they can be submitted to the Jury promptly at 1:30; otherwise, I am not going to permit them to come in short of a resolution by the Court.

MR. ROSARIO: Okay, fair enough. We will go back. I have a work station where we can do this much faster at my office. All right.

THE COURT: Okay.

MR. ROSARIO: Yeah, we didn't want to presume we were going to make any edits because, like you said, I am not going to chop something down unless you give me an explicit order to do it and I wasn't sure how much of these things were relevant, how many different exhibits.

So now that we have an agreement on what is going to be going in, I will go through and make the edits to remove the instances of the insurance.

We will audio blank those out and then put in, like, black boxes --

THE COURT: Well, there is more. And I think you need to meet and confer with Defense Counsel before you undertake this work.

You may be redacting or striking materials

that may not be of their concern and maybe leaving material in there which they have some objection to.

So you need to sit down with them and work through the lunch hour, unfortunately, and see what it is that they are willing to agree to have submitted to the Jury.

MR. ROSARIO: MILs and all evidence of insurance is to be removed, is that correct? Yes?

THE COURT: Yes. It was a standing ruling in the court.

MR. ROSARIO: Is there anything more that the Court wants us to remove other than that?

THE COURT: I think you need to speak to them about that.

MS. NAVARATNASINGHAM: I believe what we are saying is that what was shown specifically to the Jury yesterday is what needs to be clipped out from the main video. That is it. We need to see that to make sure that is what was shown to the Jury.

THE COURT: Use what you showed them yesterday and you should be in good standing with Defense Counsel, but make sure that you review it with them before you have it submitted to the Jury.

And also, do we have some sort of way to play that back to the Jury?

MS. NAVARATNASINGHAM: We do for ours. We have a setup for the Jury which we can provide Madam Clerk now.

THE COURT: Do you have a laptop?

MR. ROSARIO: Yes. I have a laptop I can provide to them with the discs or the images on them.

I am going to go and scrub them. Go ahead, Mr. Sobati.

MR. SOBATI: I want to highlight to Counsel that we found a few other instances -- you did thorough work, but we found at least one other instance of an example of a reference we need to remove.

We want to make sure that that is not presented to the Jury, of course.

THE COURT: All right. We are adjourned.

(Whereupon, the Court was in recess at 11:54 a.m.)

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STATE OF CALIFORNIA)
) ss.
COUNTY OF SAN FRANCISCO)

I, DENNIS M. SOUZA, CSR No. 3893, do hereby certify that I am an official reporter Pro-Tem of the Superior Court of the State of California, in and for the County of San Francisco, and that as such, I was present and reported in stenotype the proceedings had in the within-entitled matter at the time and place herein set forth, consisting of these proceedings held on April 22, 2025, and that the same is a full, true and correct transcription of said stenotype notes as taken by me in said matter, to the best of my ability.

DATED: San Francisco, California, this 22nd day April, 2025.

DENNIS M. SOUZA, CSR #3893

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---ooo--- 78:16

1

10 40:24 44:20 48:2 55:8
11:10 48:5
11:35 55:9
11:54 78:14
12 69:20,23
13 72:8
14 72:8
15 44:20 46:26 54:10 72:8
1:30 75:22 76:7

2

20 30:24 58:21
2021 49:5
2025 3:1
21651 17:1
22 3:1
25 60:9
28 74:11,13

3

30 41:16 43:26 44:1
3960 18:3,6

4

45 54:6

5

504 48:10
51 19:15
5th 37:28 38:2 41:20

9

911 19:23 23:21 24:16, 19,20,24 25:1,11 38:10 40:2 42:10,21 43:11 44:24 46:2,5 50:19,22 51:1 54:12 55:16 61:18, 19

A

a.m. 78:15
Abdelhalim 3:5 15:22,25 16:13,16,23 17:10 22:14 23:26 24:13 25:10 29:9 31:8 32:6 36:5,7,10,18 45:3, 15 46:25 47:8,9 48:13
Abdelhalim's 15:19 16:11
ability 14:3 30:26 59:26
absence 6:24
absolute 55:26
absolutely 29:1 51:12 55:21 64:1 74:15
accept 9:12 10:28 34:19
access 11:23
accident 52:1,15 53:19
accidents 39:25
accomplish 65:14
accomplished 75:7
accordance 73:27
account 27:2
accountant 5:8
accurate 10:28 67:7
accurately 15:12 70:17
act 8:16 16:4
acted 16:11
acting 16:3
action 15:16
actual 16:27 23:23 26:25 55:19
add 68:17
added 75:19
addition 6:20
additional 12:1
address 47:24
addresses 38:8 71:23
adjourned 78:13
adjudicate 30:26 44:6 72:3
adjudication 64:4
admissible 37:4
admission 23:15 25:22 42:10
admissions 37:17 44:26 65:17
admit 7:3 38:17
admits 49:9,15
admitted 4:12 7:5 11:6,10,17 13:10 14:17, 18 35:22 38:18 67:20 74:11,12,16 75:1
advance 68:17
advise 41:18 68:14
advisors 4:18
affect 4:14
afford 26:23 53:3
age 9:22
agency 44:9
agree 66:25 68:17 69:16,18 70:13 77:5
agreed 70:9
agreement 76:20
ahead 78:4
ailments 27:1
align 45:23
allowed 35:25 36:28 57:20 61:5
alpha 62:19,20,21
altered 75:17
alternate 71:10
alternates 71:4
amazing 63:24
ambulance 54:14
amend 35:13
America 39:4
amount 60:5
amounts 68:17
analysis 31:17
angle 41:19
announce 67:1
answering 69:6
answers 7:18 14:26, 28 15:1 36:16 65:12
apologize 32:13 74:4
apparent 65:2
appeared 74:23
applies 3:26 14:19
apply 6:13,15 67:23
approach 41:19
approached 36:9, 26 60:22
approaching 41:23,25
April 3:1
arbiters 63:24
argue 29:17,21 31:13, 28
argued 52:16
argues 51:10 53:20

arguing 31:14
argument 18:19,21 30:2 35:5 40:23 48:6,17 55:11 57:18 59:12
arguments 3:24 7:12,16 18:15 19:4 43:26 46:17 48:21
arrived 23:9,24 25:1 43:9
arrow 28:4 31:28
arrows 21:7
artificial 57:8
asks 70:10 72:11
aspect 12:7
assigned 3:13
assist 5:7
assistance 11:28
assisted 36:7
attacking 36:24 58:24
attempt 35:14
attendant 67:26
attention 6:6 41:22
attitude 8:24
attorney 10:17 26:27 33:23 34:9,14,16,18 35:7,11 44:28 53:25 55:15
attorney's 55:26
attorneys 5:28 7:9, 10 10:17
audio 38:26 76:23
authentic 33:4
auto 27:12
average 68:19
avoid 20:7
award 68:16

B

back 3:4 10:6 29:14, 19,27 30:1,2,5 37:18 45:21,26 48:5,10,12 53:23 56:2 58:7 67:19 68:25 70:26,28 72:2,9, 17 73:6,11 76:11 77:25
backing 46:24
backs 45:24,27,28 46:2
backup 28:16
backwards 38:22
bacon 60:17
bad 24:10 32:22
badge 47:3
Bailiff 12:3 67:27 70:1 72:27,28 73:2
balls 29:1
bar 57:19
barrier 17:5
base 68:14
based 4:11 6:26 14:10 22:24,27 42:7 54:19 64:22 67:9 68:8
Basic 15:28
basing 25:3
basis 20:22
bear 32:18
beautiful 28:19 62:1
beer 57:20,27
begin 3:21 18:22 71:7 73:19
beginning 19:11 44:11 66:28
behavioral 32:19
beliefs 66:26
bias 5:15 8:20
biased 9:19 39:7
bicycle 21:3 22:26 41:6 59:24 60:25
bicyclist 41:6
Bicyclists 41:3
big 20:12 65:4
bike 20:23 21:16 23:2, 5,27 24:3,9 25:7 26:9, 14 28:24 30:13 33:7,20 34:6 37:6,10,23,25,26 38:1 41:2,13,14,18 44:23 46:9 47:11 56:13, 14
bikes 40:26
billiard 29:1
binder 35:21
bit 27:20 75:19
black 76:24
blacked 57:12,13
blackout 57:10
blame 62:27
blank 76:23
blog 5:1
blue 28:23
body 19:23 20:19 21:9 23:24 25:21 38:19 44:21 47:13 49:10 50:14,28 51:1 52:16,18, 27 55:23 58:15 59:18
book 3:13
boot 34:14
bottom 70:1
bound 71:10
boxes 27:16 76:24
break 25:18 27:10,13 45:20 48:4
breaking 46:11
breaks 68:23
bring 33:11 63:18
bringing 17:13,18
brought 37:7
bucks 59:5
buddy 39:5,9 59:5
bumbling 63:28
bump 60:25
bunch 21:22 34:2 58:26
burden 12:23 18:17 54:27
burner 56:2
business 53:5
butt 62:4 64:13

C

calculate 16:27
California 3:1 17:1 73:27
call 19:26 22:5 24:10, 24 25:1,11 30:21 38:11 39:4,5 42:21 46:13 50:19,22 51:1 53:9 54:9 60:1,6 63:12 71:27 73:5
called 10:6 14:25 24:16 32:10 50:23,24 52:2 54:11 66:15 70:2 72:2,9
calling 38:13 63:6
callous 47:2 60:21
callously 59:3
calls 19:23 28:26 38:11 44:25 46:5,14 57:4,5
cam 25:21 49:10 50:14,28 51:1 52:16,18, 27 55:24 58:15
camera 59:25
cams 19:23 23:24 38:19
candid 48:27
candor 19:13 48:24
capacity 36:18,21 44:6
car 47:18
care 15:28 16:2 40:26 45:6 65:22
careful 6:6 16:6,8,10
carefully 69:8

carry 34:15
cars 41:11
case 3:9,26 4:15 5:3,6, 10 6:9,14,23,26 7:1 8:3, 5,22,25 10:23 11:5 12:7,17 19:10 27:7 28:17 35:27 38:3,6 48:7,23 52:3 53:12 54:16 66:20 67:4,11,14, 23 68:9,24 71:13,20 72:6
caught 42:3
causation 17:22 53:2,14 60:10 68:21
caused 23:12 47:21 51:13 52:6,10,24,25 53:18 54:23 62:7
causing 15:26 16:21 17:22 18:1 52:1,14
caution 15:15
cell 4:26
challenge 24:1
chance 19:10 66:14 68:15
change 48:25 49:16 50:8 66:23
changed 22:20 48:28 56:4 60:20
charge 73:1
chat 4:28
check 61:27
checked 54:17
child 45:12 60:24
choose 9:9 13:25 18:22 66:11
chop 76:16
chose 51:23
circumstantial 13:20
cite 52:9
City 47:23
civil 13:4 44:3,11 73:23,27
claim 15:20 16:16 24:21 25:20 26:14 33:17 37:5 40:11 61:18
claimed 27:14 44:26
claiming 25:10 39:18,24,27
claims 15:18 16:14 29:9,11 35:9 37:5 42:10 49:1 53:28 54:9,13 60:12 62:27
clear 44:14 47:7 54:17 58:4
clerk 48:9 70:23 74:8, 9,14,17,21,23 77:28
client 50:25 51:1,2,22, 25 52:28 53:15 54:2,4, 7,9,17,22,28 59:9 64:18
client's 51:11,16,26
clipped 77:17
clips 74:26,28 75:2,24 76:5
closing 3:23 7:12 18:15,19,21 19:4 35:5 43:26 48:17,21 52:13 55:11
closings 18:25
co-workers 4:17
code 17:1 21:16 50:12 52:6
cognitive 57:8
coin 68:15
collect 34:1
collected 10:5 22:12 37:3
collecting 39:7
collision 24:26 27:10,13 32:23 43:8,21, 24 56:1 60:2,7
color 70:21
coma 62:6
common 26:20 30:28 62:23 67:5
communications 4:22,24 5:18,19
Comparative 16:13
compensating 44:7
complaint 35:9,13 44:27 49:3,14
completely 21:25 22:23 37:19 72:4
completes 18:10
completing 54:22
complex 27:19
compliant 75:17
computer 4:26
concealed 55:15
concern 77:1
concerned 13:23
concise 44:14
conclude 12:26
condition 56:23 61:22
conduct 5:6 17:28 18:2 71:11
conducting 52:22
confer 76:26
confession 23:21 46:2 55:19,23
confine 61:15
confused 29:10 54:7
conjecture 22:27
connection 11:15
conscience 57:1
conscious 53:26
consciousness 50:14,17 56:28 57:2,16
considered 17:24 66:21
consistent 8:27
conspiracy 53:21, 22 58:25 62:18 64:25 65:8
conspiring 54:1
constructs 62:16
contact 5:7 25:10 39:24 71:16
contempt 5:20
contention 20:12 21:18
continue 64:11 68:2
continued 34:15 36:11 56:17
continuously 19:17
contributed 16:15 17:24
convenient 21:13 58:6
conversation 39:2 46:19
convinced 66:24
cooperating 51:2
cop 57:22
copies 4:3 74:2
cops 56:26
copy 4:1,5 12:13
corner 32:3 37:22 45:15
corporate 33:5
correct 29:23 43:28 58:8 77:8
cost 30:25
counsel 3:6 48:15 55:6 75:25 76:26 77:22 78:6
couple 26:27 61:20 66:3,7
court 3:3,7 5:20 7:7 8:13 10:10,19,22,24,28 12:3,21 15:1 18:9,14,26 19:7 29:17,20,24 30:5 31:6,12,20,25 34:24 35:4,23,27 38:28 40:24 42:4,25 43:2,5,27 45:19 46:16,20 47:27 48:1,4, 12 49:7,20,24,26 50:2 55:6,22 57:6 59:10,12

61:15 65:25,28 66:2 67:25 68:7,10 70:4,24 71:5 72:14,20,22,26 73:2,16,20 74:5,20 75:4,10,24,28 76:3,9, 13,25 77:9,10,12,13,20 78:1,13,14

courtroom 4:14 15:4,14 48:11 62:26 64:13 73:12,19

courts 64:3

COVID 61:25

cracked 61:21

crazy 40:12

created 19:24 20:23 25:6

credibility 36:23 44:24

credible 24:14

crew 22:5

criminal 13:2 43:7

cronyism 39:5

cross 41:13,14

crossing 60:23

crosswalk 20:10 21:6,8,9,19 22:16 23:25 24:5,8 26:12 30:12 38:6 59:17 63:7,9

custom 71:22

cut 32:21

D

daily 55:3

damage 51:26

damages 16:24 53:16 68:16,20,27 72:5

danger 60:12

dark 57:13

date 69:28

daughter 47:16

day 29:26 32:14 57:12 58:4 63:17

days 55:1

De 41:8,15

dead 39:26,28 40:3,5, 9,10,15 43:22

deal 45:10 60:1 65:5

death 47:21

deaths 56:1

December 27:7 35:15 49:5

decide 3:8 4:8,9,11 6:26,28 8:4 9:6,8 12:25 14:13 16:10 17:20 66:20 68:16 71:17 73:14

decided 6:12 8:23 69:11

deciding 8:8 67:6

decision 4:14 5:16 43:19 68:8,15 70:9

decisions 9:14

declaration 45:28

declare 47:11

declaring 30:2

defend 25:14 64:18

Defendant 13:3 44:24 58:17 65:10

Defendant's 35:10 45:1

Defense 18:21 20:16 21:28 25:3,13,25 28:19 30:3 34:7 37:16 55:12 56:19 64:16 65:14 75:12,25 76:26 77:22

Deleon 36:3

deliberate 4:2 10:23 69:20,25

deliberating 71:8, 16,18,21

deliberation 68:18 73:3

deliberations 11:8, 13 12:5 66:28 67:7 68:2 73:19

demanded 34:18

Demonstrative 11:3

denied 24:17

deny 14:7,8,11,14 30:3

Department 48:9 52:22 64:28

derived 22:28

dervish 61:4

describe 8:15 12:10

deserves 13:28

designed 64:3

despair 26:23

destroyed 10:5

determination 16:25

determine 53:14,15

determining 52:23

device 4:27

devices 4:25

diagram 28:11 30:6

diaries 5:2

dictates 62:23

dictionaries 4:20

die 62:6,11,13

died 43:15 45:9

differ 10:3,27

difference 6:21 13:24

differences 9:5

differently 9:4 66:26

differs 9:7

difficult 24:2 25:17 27:3

direct 13:7,12,15,24, 26 38:17 59:9 65:17

direction 23:28 24:9 27:24 28:4 29:6 31:15 37:20 38:9 41:25 42:5 56:15

directional 21:16

directions 24:5 46:26

directly 34:5

dirt 58:5

disability 9:20

disagree 5:27 67:15

disbelieve 13:25

discharged 5:5 71:12

disclosed 47:22

disclosures 46:23

discovery 49:4

discs 78:3

discuss 10:23 12:6 68:23 69:10

discussion 40:21 67:2

discussions 66:13 67:24

dismount 38:4

dispatcher 50:22

dispute 76:1

disregard 46:17 47:2 59:3 60:21

distrust 14:6

dividing 17:6

doctor 5:8 53:10,12

doctors 26:26

document 22:7 25:26 26:5 34:10

documents 7:4

Dolan 53:25 54:1 55:28 56:4

dollars 53:5

doodles 46:28

dotted 28:2

doubt 13:4

downtown 38:1
drawing 27:28
drinking 57:20,25,27
drive 17:4
driver's 24:13
drivers 47:10
drives 46:3
driving 17:2 31:9
due 44:4,12
duress 42:11
Dustin 51:4 57:17
duties 3:21
duty 3:25 5:5 40:25 45:6 65:21 66:17 72:13
dying 24:21,23 33:13 37:3 54:13 61:24 62:28
Dylan 15:18,20,23,27 16:14,18,20,24,25 17:11,14,16,20

E

E-MAIL 11:27 34:17, 22,26 35:2,7
earlier 69:22 71:11
ears 19:20 23:20
easily 24:2 67:4
Easy 46:11
edit 75:5
edited 74:26 75:11, 22,24
edits 76:15,22
effectively 42:13 44:5 47:10,16
effort 33:19 60:5
eject 29:6
ejected 20:10 45:22 61:11
electronic 4:23,25 5:19 11:16,22
electronically 11:18
elements 15:21
eliminates 44:5
emergency 62:5
empire 64:5
employee 54:12
EMTS 53:21
end 10:4 28:25 29:4 71:7
ended 29:3 31:1,3
engaging 11:27
ensure 55:17 70:8
enter 12:4
entered 31:2 48:11
entertainment 11:27
entire 20:22
entitled 12:18 17:2 66:8
equipment 11:19,21 12:1,12
erroneous 25:6
error 35:14
errors 21:21 24:11 46:22
escape 24:24
escort 73:3,14
essentially 19:24 22:26 24:7,26 25:5 47:19 60:18
establish 15:19 23:12 60:18
established 22:23 23:17 75:15
establishes 45:5 51:28 62:20,21
ethnicity 9:21
evaluate 15:5
evaluating 14:11
evaluation 68:9
Evan 27:17 28:2
event 3:21 5:10 9:3 72:23 74:1
evidence 3:23 4:9,12 5:13 6:27,28 7:1,3,5,6, 11,13,15,16,17,18,21 9:28 11:3,5,7,11,13,16, 17 12:14,20,24,28 13:1, 7,10,12,15,16,19,20,22, 24,27 14:2,4,5,6,7,8,12, 14,16,18,20 15:3,5 19:20 23:14 26:9 27:6 29:16,22 30:28 31:12, 22,23 32:6 33:10 34:26 35:17,22,24 37:17 38:10 42:19 44:14,15 45:18,21,24 46:15 48:26 49:27 51:12,15, 24,28 53:17 54:20,25 56:10 59:24 61:2,13,14, 16 64:22 66:21 67:14, 16,20 68:9 69:10 74:16 77:7
evidentiary 46:24
excluded 74:20
exclusive 8:11
Excuse 40:22 56:8
excused 17:15,19 58:18 72:15 73:18,21
exhibit 12:7,13 13:10 33:28 34:1 35:20 74:10, 13
exhibits 7:2 11:16, 20,22 33:28 35:21,24 36:2 67:19 74:7,9 76:19
exist 44:23
expect 44:13 47:2
expected 14:9
experience 5:4 67:6,13
experiences 67:10
experiments 5:7
expert 28:27 57:5,7
experts 26:24 53:3,9
explain 11:4 14:7,8, 11,14 34:25 40:8 58:2 68:11
explained 53:13 64:20,22
explaining 29:13
explanation 33:6 67:22
explicit 76:17
explicitly 23:4
expound 36:11
express 48:6 71:19 72:16
expresses 70:6
extend 4:23
extent 28:10
extrapolate 31:21
extremely 23:8 36:13
eye 33:5 36:21
eyes 19:19 23:7,20 39:13,14 40:19
eyewitness 22:13 32:2,7
eyewitnesses 59:25
eyewitnesss 45:26

F

fabricate 44:5
fabricating 36:7
face 5:20,22 36:20
fact 4:3 9:18 13:12,16 24:1,2 37:22 49:10 52:8,26 53:6 57:1 59:3 68:25
factor 15:26 16:21 17:12,18,22,23,26,28
factors 8:9
facts 4:8,11 6:12,15, 28 11:14 27:10 63:1,24

failed 14:8 22:19 54:21
failing 16:4 63:17
fails 16:7
failure 14:7,11,14 16:1 30:24 42:24 43:7
fair 31:17 64:4 66:14 76:10
fairly 44:6
faith 50:4
faking 56:24
fall 59:28 62:6
falling 30:20
false 25:6
family 4:16 5:8 20:4 38:15 63:27 71:15 72:11
fashion 3:16
fast 45:8,16 65:20
fast-forwarding 74:25
faster 76:12
fault 25:14 33:21 47:26 52:1,5,14
faulty 61:2
favor 9:19
Feel 66:23
feelings 29:19
feels 33:2
feet 21:12 44:20 45:22
fellow 67:3
felt 54:13
female 62:20
Fernandez 21:24 26:15 30:22 46:22 51:19,25 52:2,4,8 58:9, 17,19
fighting 23:8
figure 39:18
file 26:3
filed 35:9,15 49:3
filings 26:25
filling 39:2,12 65:11, 12 69:27
final 47:6
finally 66:5
find 6:13 17:13,15,16, 19 38:27
finding 40:14
finds 42:4
fine 5:22
finish 30:8
finished 69:27
Fire 64:28
fired 35:7
Firm 53:25 54:1 55:28
first-hand 63:3
firsthand 63:4,5
fits 59:26
fix 35:14
flee 50:27
flew 13:15,22
flip 68:15
flips 40:2
flying 13:14
focus 35:27
foggy 45:12
folks 58:22
follow 3:27 5:25,26 6:2,14 69:7 72:5
fool 63:28
foot 29:28 30:1
footage 49:10 50:14, 28 51:1 52:16,18,21,27
forepersons 66:15
forever 60:20
forget 9:2
form 22:27 48:6 69:2, 3,12,14,23,27 70:10,20 71:2,19 72:16 73:26
forms 4:23 13:8 69:7 70:21,25
fortunate 43:18
forward 44:15 64:23
found 28:13 40:11 43:15 54:28 75:13 78:7, 8
foundation 25:4 31:11 33:7 42:6 45:18 62:25
Fourth 51:4
France 41:8,15
Francisco 3:1 52:22 54:5
Franciscus 15:18, 20,23,27 16:14,18,20, 24,25 17:11,14,16,20
Frankenstein 22:28
Frankly 3:18
free 41:11 66:23
friend 65:4
friends 4:17 39:11 71:15
full 21:25 24:11 41:12, 14 46:22 57:19 61:24
fully 41:21
fundamental 44:3

G

gave 3:28 73:26
gender 9:21
generating 36:7
gentlemen 21:6
give 5:26 6:7 8:28 13:27 19:2,10 31:18 48:17 60:13 66:25 67:25 69:1 72:9 73:7 74:2 76:17
giving 8:25 31:17
good 3:3 40:5,7 48:22 50:4 53:8,26 77:21
goodness 20:15
govern 9:28
grab 34:8
grain 47:14
granddaughter 47:17,20,21
great 30:23 47:11 56:19
green 37:11,12 52:19 56:13 70:23,24,25
grill 56:17
ground 28:21 42:2,16 58:4 62:28
group 4:20 60:7 62:21,22
guess 6:3 7:24,27 25:16 39:22 41:3 46:9
guidance 73:23
guilty 13:3 47:19
guy 26:28 38:13,23 39:5 41:6 46:9 57:18,24 58:3 59:6 65:3
guys 26:3 32:13 34:1 41:7,8,10,15 43:19 59:14,17 65:1,27

H

habit 32:22
half 18:26 19:1
hand 9:10 63:21
handle 44:7
handwrite 66:5
handwritten 66:4
happen 5:11 20:14 34:5 39:25 69:1 70:19
happened 4:10 8:15 9:1,26 14:16 24:27 36:4 39:22,28 40:4,9 43:14, 19 44:2,8 51:9 56:3 57:23 58:21 59:6

happening 27:22 28:23 60:14
hard 37:16 60:27
harm 15:27 16:2,15, 22 17:13,18,23,24,27 18:1
harmed 15:19,24
heading 31:26
hear 3:23 5:13 8:12 62:13 63:2,5,8 72:14
heard 3:22 7:2,7 13:9 24:15,19 51:6 52:26 53:11,23 58:9 66:14
hearing 54:25
hearsay 19:26 20:18, 27 21:25 22:24 26:10, 17 30:14 33:8,12 35:8, 9,11 36:26,27 37:19 42:7 44:17,28 46:24 49:6 52:17 58:10 61:8,9 62:3,25,26 65:15
height 58:6
held 5:20
helpful 10:14
herd 62:19
hey 36:15 37:5,9 38:13,21 39:5,6,25
hide 29:7 33:4 55:27
highlight 78:6
highway 17:5
hire 53:3,9
hit 20:2 28:17 29:3,27, 28 30:1 31:14 38:14,16, 23 42:4 43:10,12,15 45:12 46:12 47:4 50:19, 20,26 51:3 58:3 59:4 60:27 61:10
Hold 34:21 35:2
home 61:27 72:11
honest 66:25
Honor 18:24 27:25 28:9 29:15 30:8 31:5, 10,19 34:20,26,28 35:17 48:19 65:24 74:4 75:12
hoping 47:22
hospital 45:28 54:15 61:23
hour 18:26 19:1 41:16 49:12 76:6 77:4
household 4:17
housekeeping 18:25
hovered 56:17
human 59:4 60:3 62:19 64:25
humorous 40:14
hurt 60:25

I

idea 24:3
ideas 6:17,18 67:4
identifying 71:1
ignore 7:24 8:1 9:13
illegally 38:4
illustrated 47:15
images 23:16 26:10, 11 78:3
imagine 24:6 26:23, 28 28:7 32:17 56:25
immediately 67:1
implicate 24:25
implicating 24:26
implies 43:21,23 45:1
implying 24:3
importance 14:14 48:24
important 6:8,19 8:5 9:9 19:13,21 41:1 45:4 70:15
impossible 57:14, 15
impressive 22:21
improper 35:4 49:20
inability 60:21
inaccurate 26:24 56:8 61:18 63:22
inadmissible 26:17,18
inaudible 25:14 34:18 64:5
incapable 27:7
incident 39:9 50:23, 24 51:13,17,27 52:25 53:4 54:8
includes 16:23
including 4:16 5:1, 18 7:2 11:26 68:24
inconsistencies 42:8
inconsistent 42:6
independent 9:27
indicating 28:22
indigent 59:2
indirect 13:7,19,24, 26
indirectly 13:16
individual 44:10
individually 70:5
infects 62:16
influence 5:16
influenced 10:2
information 5:3 11:24 22:13 34:1 37:2 63:21 67:8 68:7
injured 21:17 23:8 28:18 33:13 65:23
injuries 20:4 21:23 32:7 52:7,10,25 54:24
injury 23:13 26:22 29:14 45:9 47:1 60:28 61:6
inoperable 49:2 50:11
inquire 51:19
instance 13:21 67:26 78:9
instances 75:14 76:22 78:7
instant 4:28
instruct 3:25 73:16
instructed 69:5
instruction 3:13 12:11,18 14:19 71:9
instructions 3:8,12, 27 4:1,5 6:7,10,13,14, 18,21 17:21 18:11 23:11 66:3,6,7,9 69:7 71:11 72:10 73:7,22,25, 28
insufficient 26:25
insurance 6:22,23, 24 76:22 77:8
intelligence 57:8
intelligent 36:13
intend 67:1
intention 64:11
interest 55:21,26
interested 34:17
interesting 25:2 39:17 56:16
interfere 67:2
interjection 19:27
intermittent 17:5
internet 4:27,28 11:23
interrogat 56:18
interrogation 33:13
interrogatories 14:22,25 34:13 35:10 44:27
interrogatory 34:11
intersection 27:28 28:12 41:4,24,26 45:4,8 60:22,23 61:5,6 62:9 65:20

interviewed 51:7
intoxicated 51:8 57:18
inverting 60:11
investigate 5:6,12 30:25
investigation 52:23 58:23 63:19
involved 4:15 5:10 8:21 53:20,21 67:11 71:14
involvement 24:18
irrelevant 6:25 63:12
issue 3:19 65:19 68:6 74:22 76:4
issues 69:11 71:20

J

jacket 39:20 51:14
jacks 61:3
jail 5:22 43:16
jet 13:14,18,22
job 22:11,12 25:28 53:7 64:17
join 27:21,27
joking 40:14
Judge 3:22 19:14 32:14 53:13
jump 47:10
jumping 61:3
jumps 36:16
junior 22:4
juror 5:4 66:11,12 68:18 69:24,28 71:8
jurors 3:5 5:13 10:2 48:14 61:16 66:19 67:4, 9,15,22 69:23 70:8,13, 22 71:10,17,21
jury 3:8,22 4:2 5:5 9:25 10:7 11:20 12:4 33:26,27 46:16 47:23 48:11 53:24 66:2,6,10, 18,22 68:25 70:3,7,16 71:7,12 72:12,23 73:1, 3,18,20,22,27 74:19,28 75:6 76:7 77:6,16,19, 23,25,27 78:12
justified 45:2

K

kick 38:5 49:1 64:12
kill 45:13 60:26
killing 47:19
kills 47:18
Kimberly 70:21
kind 13:26 23:12 36:28 37:9 38:22 43:23 56:1
knew 14:10 24:17 27:9 46:12
knowledge 8:3 43:21

L

lacked 46:24
lacks 31:11 42:6 45:17
ladies 21:5
landed 32:8
lane 20:23 21:16 23:2, 5,27 24:4,9 25:7 26:10, 14 27:24 28:6,24 30:13 33:7,20 34:6 37:6,10, 20,23,26 38:1 41:2,11, 13,14 44:23 46:10 47:11 52:20 56:7,13,14 59:24
lanes 17:7 27:23 28:5
language 68:26
laptop 78:1,2
late 26:24
laugh 59:11
laughing 40:13
law 3:25 5:24,26 6:2,8, 17,27 7:13,15 13:23 17:11,17 37:21 46:11 53:25 54:1 55:28 63:28 65:22 69:5
laws 67:23
lawyer 5:8 53:24 55:22
laying 28:21 42:16 58:4 62:28
lead 22:21
leaders 4:18
leading 37:13
learn 27:3
learned 67:12
learning 36:1
leather 51:14
leave 13:18 35:12 65:13 71:28 72:21,22
leaving 77:1
left 12:5 21:21,23 29:10 31:16,24,26 32:6, 7,8 37:23 39:13 43:6 44:1 58:18
legal 54:18
legitimate 58:23
letter 53:23
liability 25:14 53:14 68:22
liar 54:3,4
lies 60:20
lieutenant 33:15
life 23:8 30:24,25 42:17 43:13,24 45:16 60:20,28
life-altering 47:1
light 17:21
Lime 49:2,9,12,15
limit 18:25 55:8
limited 11:26 14:17, 18 44:9
lines 20:13 27:18
list 8:10 33:28 34:1 74:10
listed 74:12
listen 23:21 39:16 62:15
lists 74:9
live 62:6
lives 55:3
living 4:16 59:3
loaded 56:12
location 20:9 23:24 32:8
locations 34:2,8
logic 25:12 28:1 32:10 47:22
logical 25:15 26:1 31:18 33:6
long 24:18 32:25 56:17 62:5 64:9 73:5
loophole 47:25
lose 50:16 57:1,15
lost 50:13 57:2 64:7
lot 27:1 55:28 75:19
love 71:26
lucky 39:26,27 40:3,4, 8,10,14 43:22 62:10,11, 12
lunch 46:11 73:5,6,15 76:6 77:4
lying 42:10

M

Madam 74:9 77:28
made 15:3,8,9,12,14 38:11,12 44:27 49:14 51:1 54:17 55:17 56:27
mailing 71:23
main 65:19 77:18
major 44:8

make 6:21 9:2,14 12:1 18:19 32:27 42:28 43:19 50:2,4 55:13 59:12 65:4,17 67:8 68:19 75:17 76:15,21 77:18,22 78:11
makes 3:15 13:23
making 19:5 23:17 27:7 31:26 53:5,8
male 62:20
man 24:21,23 25:20 28:13 33:13 36:24 38:21,23 39:6,10,23,25 40:1,11,12 58:3 60:15 62:23 65:12
manage 73:8
manual 3:16
manufacture 63:11
mark 58:17 70:26
marked 40:27
market 54:5,6
marks 39:20
material 77:2
materials 4:21 11:4, 6,9,15 35:23 76:28
matter 3:4 13:1 18:17 25:15 48:13 63:10 71:22 72:17 74:7
matters 67:11
meaning 14:13
means 5:21 6:2 20:26 29:5 30:21 40:4 54:26
media 4:25 11:27
medical 26:24
meet 54:27 76:26
members 3:22 66:2, 22
mentality 62:19
mention 75:14
mentioned 10:25 42:11 74:8
message 47:7 58:13 71:28
messages 58:12
messaging 4:28
middle 61:4
miles 41:16 49:12
millions 53:5
MILS 77:7
mind 66:23 67:3
mine 45:23
minutes 30:24 40:24 43:5,26,27 44:1 46:20, 26 48:2 54:10 55:8 58:21 60:9
mirrors 54:17
misdemeanor 17:9
missed 18:11
misstates 38:24 40:16 42:18,19 49:26
mistakes 9:2
moment 20:24 43:19 55:18 68:12 71:5
money 53:7,8 64:7
months 27:4,5
morning 3:3 48:22 62:1 73:26 74:23
motion 35:12
move 19:18 21:17 33:10 35:5 38:8 43:3 69:17
moving 35:28 41:16 42:24 43:4,25
multiple 23:1,16 26:12 29:9,11 43:12 52:12,14

N

narrative 23:12 25:3, 6 30:17 33:16 36:8 42:6 45:23 56:4 59:26 60:17
national 9:22
natural 62:19
naturally 65:1
nature 60:3 64:25
Navaratnasingham 18:6,13,24 27:25 28:9,26 29:15 31:4,10, 19 33:25 34:20,28 35:16,20 38:24 40:16, 22 42:18,22 45:17 46:14 48:16,18,22 49:8 50:7 57:4 59:8 61:12 65:24 74:3,6,15,18,22 77:15,26
necessarily 37:1
negligence 15:17, 19,26 16:1,13,14,21,28 45:1 53:18
negligent 15:22 16:3,5,19 17:14,21 45:5 53:15 54:23,26,28
networking 5:1
neuroscience 57:8
normal 44:13
note 12:2 68:5 71:24, 27
notebooks 9:25 72:22 73:11
notes 9:23,24,26 10:2,4,27
notify 70:1
number 3:13 23:3 25:20 38:4 56:12 59:16 70:28 73:22 74:1
numbers 66:5
numerical 73:26

O

oath 14:27 53:27
object 7:21 28:9
objection 7:23,25 28:26 29:15 31:4,10 34:20 35:1,16 42:22,26, 27 43:2 45:17 49:6,19, 27 57:4 59:8 61:13 64:21 65:24,28 77:2
objections 50:3
obligated 41:4 43:9
Obligation 12:18
obviousness 26:21
occurred 18:1
offer 15:3
offered 7:22
office 76:12
officer 20:18,19,20, 21,26 21:1,2,8,24 22:2, 3,18 25:19 26:2,6,7,15 30:14,18,22 33:7 36:2, 4,10,15,22 39:7,19,23, 25 44:4 46:8,12,22 51:7,25 52:2,4,8,26 56:21 58:8,16,18,19 59:23 61:8 65:10,11
officer's 46:18
officers 22:5 23:9,18 25:1,7 36:9 40:3 46:22 47:3 49:11 50:16 52:19, 22 56:9 58:13 62:15 63:10,15,16 65:7
on-line 5:2
one's 16:2
one-lane 21:13
one-way 59:23
open 67:2,3 68:7,10 70:4
opening 7:12
operate 12:11
operates 33:13
opinion 5:16 13:11 57:5 71:19
opinions 48:7 66:27 72:16
opponent 15:2
opportunities 18:16
opportunity 18:18, 20 19:2 51:18,21 55:2,7 60:13
opposing 15:4 17:7

option 20:7
options 44:10
oral 15:3,13
order 3:15 6:20 37:18 48:9 55:16 62:19 69:11, 12 73:24 76:17
orderly 66:13
Orengo 36:5,10,16 39:1,12,23,25 58:18 65:10,11
Orengo's 36:6
organizations 44:6
orientation 9:21
origin 9:22
original 70:20
outbursts 32:28
outline 20:14
outlined 42:8
outlining 21:28
outweighs 44:16
overcome 25:17
overreactive 32:16
overrode 26:7
overruled 38:28 49:7,20 57:6 65:28

P

pages 74:2
pain 32:14
paint 54:2
paper 4:6 12:13
parrot 22:10
parroted 23:18
parroting 25:27
parrots 33:12
part 8:6 9:13 10:11 19:22 25:2 67:13
parte 35:12,19
participation 55:5
parties 3:6,24 6:1,23 7:8,11,13,14 8:21 12:20 14:24 48:15 67:28 76:2
parties' 7:17
party 10:17 12:26 13:1,5 14:1,3,4,8,15,22, 23 15:2,4,7,9,14
party's 7:20
pass 5:11 59:4
pathological 32:19
patterns 32:19
pause 42:28 72:13
pay 5:22 6:6
paying 41:22
PDA 4:26
pedestrian 38:18 41:2 43:8 50:11
pedestrians 40:26
people 4:15 9:1,3 20:13 26:12 32:21,24 37:18 40:28 44:19 47:8 48:24 55:24 57:9,19 58:27 60:2,4 61:24 63:23 64:3 69:18 71:13
percent 19:15
percentage 16:25
period 57:16 58:21
permit 76:8
permitted 10:19 31:21
perpetrator 39:8
perpetuate 62:22
perpetuated 30:14 33:9
perpetuation 30:17
person 8:2 16:3,5,6, 8,11 17:23 20:6 29:2 41:24,26 44:13 45:5 50:24 56:28 57:15 58:2 59:2 63:5,6
personal 8:20,22 11:25 67:10 68:8 70:6
personally 36:25
persons 4:16
persuade 12:20
phase 68:21 72:3,5,6, 23
phone 4:26
photograph 51:19, 22
photos 30:9
phrase 20:26
physical 20:9 23:23 26:21 45:24
physically 24:8 59:22
physics 27:12 28:28 29:7
physiological 32:20
pictured 28:21
piece 13:27 23:19 25:19 65:18
pieced 59:25
piecemeal 33:17,22 56:10
piecemealed 22:28 23:15
pieces 56:18
piecing 56:19
Ping-pong 29:1
place 3:14 29:25
places 23:1 37:7
placing 25:7 26:12 63:6,8
Plaintiff 52:1,2,4,9, 11,23 54:2,20,23 74:24
Plaintiff's 35:12,19 74:10,13
plane 13:14,15,22
planes 13:18
play 77:24
point 23:6 28:7,8
pointing 55:13
police 21:20 22:6 24:10,27 25:6 26:18 27:14 33:6 38:16 40:3 43:9 44:2,9 46:21 51:2 52:22 54:10 56:21 62:15,17 63:14 64:26 65:6
polled 70:16
polling 70:3,7,21
position 66:24
possession 21:11
postulating 41:28
potential 39:8
power 14:1
Predeliberation 66:9
predisposition 58:27
prejudice 5:15 8:20
prepared 75:25 76:6
preponderance 32:10 44:16 54:20
presence 6:24
present 3:6 12:8 48:15
presented 12:21 29:21 50:19 51:28 61:16 63:25 68:9 78:12
presiding 66:11,12 69:28
presume 76:14
presumption 16:28 38:3
pretty 47:24
prevent 16:2
previously 3:28 74:8
pro 73:17
problem 44:8
problems 12:10
proceed 12:16

proceeded 38:16
proceedings 3:2 72:13
process 44:4,12
produce 14:1 51:18
produced 13:1
professionalism 47:3
prohibited 30:26
prohibitions 4:22 5:17,18
promptly 76:7
proof 11:14 12:23 18:17 54:27
proper 63:18
properly 75:10
prosecution 13:2
prove 9:18 12:19,22, 27 13:3,5,6,12 15:20 16:17 31:15
proven 28:17
proves 13:16 17:10
provide 4:4 14:4 67:8 73:23 75:21 77:27 78:3
provided 11:17 14:4, 5 17:8 19:20 34:21,22, 26 35:11 36:2 56:9 67:21 74:9
providing 20:16 25:25
public 5:16 44:9
punishment 5:22
purely 33:8 59:25
purpose 11:22 14:17,18,21 71:25
pushing 49:1 50:11
put 28:2,3,4,20 33:22 34:2 35:18 43:13,24 44:15 45:16 53:26 56:2 64:23 76:23
puts 33:17
putting 33:7 44:23

Q

question 7:20,23,24 22:26 29:4 36:11 38:17 40:5 68:11 69:9,14,17, 21,22 70:12,16
questions 7:17 10:18 11:1 14:24,25,27 15:1,6 23:4 36:19 37:13 39:3,12 56:12 65:12 67:15,25 69:3,6,12,24, 26 70:11 71:3 73:10
quick 46:10
quickly 30:20 59:27
quoted 20:19

R

race 9:21
raise 49:27
raised 74:23
ran 29:12
rank 26:3
rate 45:13
reach 5:25 6:15
reaching 6:3
read 3:7,14,15 10:9, 10,12,16,24 14:28 23:21 26:5 35:6 67:19 70:4
readback 10:7
reading 10:6,20,22
ready 65:3
real 30:20 44:18
reason 8:18 11:25 21:5 32:11 45:7,10 52:9 58:16 71:22
reasonable 13:3 16:1 17:23 64:24
reasoning 57:28
rebuttal 18:21 48:1 55:7,11 59:12
recall 57:9
receive 5:2 70:10
received 12:14 67:14
recess 48:8 78:14
recognized 73:25
recollection 9:27
record 3:5 10:28 18:5 40:21 48:14 55:16
recorded 15:12
recording 58:20
recordings 75:5
recurring 3:19
redacted 24:20
redacting 76:28
reduced 16:24
reduction 16:27
refer 20:1 35:23
reference 4:21 74:7 78:9
references 51:4
referred 12:23 13:19 70:7
reflect 3:5 48:14
reformatted 75:16
refused 54:14 61:18
refusing 56:4
regard 70:2
reiterated 48:24 52:12
related 8:3 51:14 67:10
relationship 8:21
released 72:4
relevant 76:18
religion 9:21
remaining 69:25
remarks 18:28 61:16
remember 8:14 9:2, 4,26 10:3 23:6 25:19 32:13 39:14,23 48:6 55:14 58:12 62:4 70:15 72:16
remote 17:25
remove 76:22 77:12 78:10
removed 18:6 77:8
repeat 6:17
repeating 22:2,6,10 34:22
report 21:21 24:11 26:18 43:7,16 46:21
reported 38:20
Reporter 10:10,19, 22,24 18:5
Reporter's 10:28
reporting 22:22
reports 63:14
request 10:8,11,13, 26 12:2,11,13 35:10
requested 10:21
required 12:21 13:5 68:14
requirement 19:15
research 4:19,23 5:18,19
resolution 76:9
resolve 76:1,4
respond 19:3
response 53:28
responses 49:4
responsibility 16:26
rest 9:13 23:18 25:27 26:3 33:14 62:16
restart 64:6
result 51:13,26 72:1
review 11:7,12,22 75:26 76:1 77:22
reviewing 11:26 73:25

revised 3:19
REYNA 18:8,12
ribs 61:21
ride 41:18
riding 20:22 23:1 33:20 37:20 38:4 46:9 49:9,11,15 56:7,14
rights 44:3,11
ripe 21:21
risk 43:13,24 45:16
robots 33:5
room 4:2,28 9:25 10:7 11:20 12:4 32:15 53:24 62:5 66:6,10,18 68:25 73:4
Rosario 3:4 15:18, 20,23 16:18 17:11,14, 16,20 18:4,16,18,23,28 19:5,9 22:16 27:27 28:11,28 29:17,19,23, 26 30:7 31:1,7,14,20,23 32:2 33:18,27 34:21,25 35:2,6,18,25,28 37:5,9 38:26 39:1 40:18,25 42:20,24,26,27 43:1,4, 7,28 45:20 46:18,21 47:28 48:3,13,23,26,28 49:6,8,11,16,19,22,25 50:1,6,8,13,15,18 51:4, 10,18 52:16,18 53:2,20, 28 54:8,11,27 55:12 56:14 57:7 59:11,13 61:14,17,20 62:2 65:17, 25,27 66:1 75:4,9,12,27 76:10,14 77:7,11 78:2
Rosario's 15:27 16:14,20,24,26 34:9,10, 16 49:14 51:14 53:18, 24 58:7
Roseman 38:19,21 46:6 51:5 57:17
Rosemont 51:7
rules 6:17,19 36:1
ruling 42:28 77:9
run 50:19,21,26 51:3 54:5
runs 54:4

S

San 3:1 52:22 54:5
sanctions 5:20
satisfaction 76:3
saysz 20:24
scared 24:22,23 40:12 42:17,21 54:7 60:12
scenario 22:23
scene 5:9,11 22:3 26:1 30:25 33:16 39:8 50:27 51:2 52:13 54:8, 14 58:11,16
scoot 38:5
scooter 21:10,15 22:15 28:22 30:10,12, 21 37:25 49:2,9,12,15 50:11
scooting 49:2
screaming 42:1
scribble 46:27
scrub 78:4
scuff 51:11,13,16 58:5
seats 72:8
sec 34:21
seconds 57:3,11,14
section 17:1,6
sees 46:3 64:13
send 5:2 47:7
sending 12:2 21:15 71:25
senior 22:3
sense 3:15 8:13 26:20 30:28 62:23 67:5
separately 69:9 70:12
separates 17:6
separating 27:9
sergeant 22:21
serve 5:21
served 49:5
service 4:27,28 72:20
services 43:11
session 3:4 7:7 48:10,13
set 3:12
settle 55:22
setup 77:27
severe 45:9 47:24
severely 56:22
sexual 9:21
SFPD 53:20
share 67:4
shoes 25:16 63:20
short 48:8 57:11,16 76:8
shot 41:11 44:25
show 8:20 19:10 20:9 27:9,14 51:21 58:15 61:2
showed 50:15 58:27 75:2 77:20
showing 33:25,27,28
shown 11:4,9 74:24, 28 77:16,19
shows 25:26 53:17
shuffled 71:1
side 7:21,22 9:15 17:2 20:22 21:3,23 25:9 37:27 43:12
sidewalk 20:11 21:10,14,19 22:17 23:25,26 24:22 26:13 28:14 30:13 33:14 37:3, 26 38:5,20 40:12 45:22 46:4,5,6,7 59:19,20,22 61:11 63:7,9
sign 21:4 22:26 40:20, 25,27 69:28
signs 21:5,7 26:21
Simmons 20:18,19, 26 21:1,2,8 22:2,18 25:19 26:7 30:14,18 33:12 46:8,12 59:23 62:16
Simmons's 36:22
simple 27:16,18,28 28:1,11 54:16
simply 9:14 68:17
simultaneous 20:13
single 9:18 30:17 41:4 64:21
sir 18:23 26:4 29:20,27 30:6 31:12,24 33:15 34:24 35:4,5,24 40:24 43:1,4 46:20 49:21 55:9 59:12 61:15
sister 54:12
sit 27:21 40:19 47:25 56:24 77:3
site 5:1
sitting 72:8
situation 16:7,9,12 30:27 32:20 65:2
situations 60:4
sky 13:14,15,22
slow 45:7,11 60:21,24 62:8,9
slower 65:21
small 54:5
smart 4:26
smelled 13:9
snickering 59:15
Sobati 78:5,6
Sobati's 40:23
social 5:1 11:27
socioeconomic 9:22
solid 28:3
someone's 13:11
sort 77:24

source 11:24
speak 8:17 18:16 19:7 77:13
special 67:9 69:1,3
specific 10:13
specifically 10:25 36:27 77:16
speculate 29:24 30:19
speculation 46:15 49:19 50:1,2 57:5
speed 61:6
spin 47:13
spinning 61:3
spiritual 4:17
split 25:2
splits 25:12
spoke 36:10
spread 30:14
squares 27:16
stabbed 57:24
stabs 57:19
stake 8:22
stand 22:21 26:6 42:11 52:3,11 53:27
standard 15:28
standing 25:23 57:2 77:9,21
Star 44:19
start 3:16 19:11 53:15
started 19:12 22:2,6, 9 25:26,27 48:23 58:19 60:16 64:19
starts 40:2 62:23
state 6:8 10:14 24:15 66:27
stated 19:15 21:24 23:4 24:20 26:15,19 29:21 33:23,24 54:16 58:9,14 64:21
statement 15:3,5,8, 10,11,14 24:13,19 28:16 31:24 50:5 56:27
statements 7:12,15 15:2 23:17 26:16 46:23 67:8
states 17:3 20:21 33:14
stating 33:23
station 76:11
status 9:22
stay 64:12
stepped 26:1
stop 5:12 12:5 41:4, 12,14 42:28 69:24
stopped 28:13 41:21
store 39:6,10
stories 48:25
story 20:13,15,16 22:20 24:28 34:4,15 36:8 37:18 40:1 44:5 45:25,26,27 46:1,2 48:28 49:17 50:9 59:22 60:11 62:15,16,20,21
straight 20:3 36:19 40:1
street 20:23 21:12 24:23 41:20 59:3
strike 22:14 68:26
striking 76:28
stronger 14:5
strongly 66:28
struck 18:4 20:6 21:18 30:20 38:18 40:6 44:22 56:22
stuff 72:21
subdivision 17:2,8, 9
Subhi 15:19,22,25 16:11,13,16,23 17:10 38:11 39:1,3,18,26,27 40:5 45:3 46:4
subject 10:15 52:24 71:14
submission 75:5
submit 75:25
submitted 74:27 76:7 77:5,23
substantial 15:26 16:21 17:12,18,22,28
substituted 71:20
succeed 16:16
sudden 22:9
suddenly 21:11 23:1 37:23 40:2 44:19 57:13, 22 59:21,23
suffered 27:1
suffering 29:26
suggested 7:20
sun 45:14
sunlight 31:8
supplied 12:14
supplies 12:1
supply 4:6
supposed 41:12 45:7,11 73:24 75:4
survey 71:26
surveys 71:26
sustained 7:23,25 43:3 45:19 46:16 59:10 61:15
switched 60:16
sworn 7:4 72:27,28
sympathy 5:15
system 33:1
systems 57:9

T

tablet 4:26
tack 60:10
tactics 64:16
taking 9:23 46:25
talk 4:15 7:13 10:20 66:17 67:28 71:13
talking 19:12 30:5,6 36:25
team 30:15 33:14 63:27
tear 23:19
technical 11:28 12:10
technician 12:4,5,8, 9
Tehama 27:18 31:27 41:5,21
teleport 44:19
telling 40:3 43:14 52:18 53:25,26 64:2
tells 50:16,18 69:14,23
ten 45:22 49:12
term 66:16
terrible 32:23
terrified 24:23
terror 32:14
testified 51:25 52:4, 8,12
testifies 13:13,17
testify 53:10,27
testifying 8:17
testimonies 57:27
testimony 7:4 8:5,7, 9,25 9:6,7,17 10:7,9,11, 12,16,18,20,23,25,27 11:5,15 13:8,14,21 15:13 26:22 28:27 37:4 38:25 39:8 40:17 42:19 45:27 53:11 57:21 58:1 63:2,3,4,6,8 67:6,17,19
text 4:27
Thanking 55:12
therapists 4:18
thing 20:5 30:19 32:23 39:17 47:5,6 61:17 63:15 64:2 66:10 68:28 75:14

things 9:2,12 21:22 27:3 32:28 64:24 65:18 73:13 76:18
thinks 62:12 68:18
Thompson 20:20,21 22:11 26:2,6 38:19 46:27 51:7 52:26
thought 59:1,2
threatening 42:15 60:28
tidy 30:23
till 28:16
time 3:7 5:14,21 18:15,20,25 19:25 24:18 25:19 32:21,23 39:19 44:22 46:26 47:27 53:4 54:8,11 57:16 58:2,19 61:28 64:7 66:15 68:1 73:4
times 29:9,11 38:17 43:12 52:12,14
today 28:16 48:23 52:13 55:4
told 9:12 23:9 24:20, 27 25:23 34:12,26 35:3 38:15 49:11 50:13 52:13 53:4,6 60:15
tolerated 32:25 64:9
tone 39:16
total 32:14
totally 6:24 25:15
touch 39:19
touching 40:13
Tour 41:8,15
track 66:5
traffic 17:7 30:22 46:13 47:14 60:1,6 63:12,18
trail 13:18
training 67:9,13
transcript 71:2 74:19
transcripts 70:27
transparency 64:20
transparent 33:3
transportation 54:14
transported 21:8 23:14,27 38:6 59:21
transports 21:11,14
traveling 52:5,19 54:21
treated 47:1
treating 65:7
Trek 44:20
trial 4:12 7:2,11 9:23, 24,27 10:4,6,8 11:3,10 14:17,23 53:16 55:17, 20,24 68:21 72:24 73:23 75:1
trials 13:2,4
tricycle 47:16,18,20
trivial 17:25
truck 20:2 22:14
true 7:19,20 8:19 9:13, 17 12:19,22,25,26 13:6 25:8 67:6
truth 9:8,11,12 19:12, 13 60:15,16 63:23,24
turn 15:16 21:21,22 27:20 31:16,26 32:3 37:22 41:12 54:18,22
turned 29:2,11,12 31:8,24 32:6,7,8 41:27 42:1
turning 29:5 40:28 41:5 45:14
turns 39:24
types 27:3

U

ultimate 71:8
understand 3:18 7:14 24:6,7 29:20 32:27 42:9,13 44:18 45:21,23 56:3 60:3 63:21 64:16 65:14
undertake 76:27
unidentified 50:20
unique 67:9
unit 22:6 30:22 46:13 62:17 63:18
unlawful 17:4
unpack 27:6
unreasonable 19:2
untrue 9:6 24:20
upset 32:16 65:6
usable 62:26
utilize 25:13

V

van 38:21,23 58:3,20
vehicle 17:1,4 29:5 39:21,24 50:12 51:11, 16,26 52:6 58:5,17
vehicles 41:5
verdict 5:25 6:3,4,16 9:28 68:19 69:1,3,12,23 70:4,6,10,20 72:1
versions 9:1 75:23
versus 3:4 48:13
victim 20:2 23:23
video 20:9 23:7,17 26:11 32:4 36:6,12 38:27 43:13 45:14,24 50:15 52:20 59:18,24 61:10 63:5 65:9 75:5,24 76:5 77:18
videos 31:7 39:16 74:24,25 75:9
view 5:9 11:19 15:13
views 66:18
violate 5:17 17:17
violated 17:11 44:12 52:6
violating 21:16
violation 5:23 17:8, 12,15,17,19 44:3 50:12
violently 42:15
visit 5:9
visits 45:27
VOICE 71:4 72:19,21, 25 73:14
vote 67:1 69:25 70:6, 11 71:17
voted 68:6,11 69:21 70:16,18

W

wait 68:3
wake 57:12
walk 37:25 38:5
walking 47:15,17
wanted 18:9 23:10 55:13 58:22 60:7
watch 23:7 32:4 36:6 39:13 45:14 62:13 65:9
watching 41:17 65:16
ways 59:17
weaker 14:4,6
web 5:1
websites 5:1
Wednesday 53:3
weighing 12:24
weight 13:27
whatsoever 11:26
whirling 61:4
white 13:18 70:20
wife 62:1
win 55:24
witness's 7:18 8:5,6, 8,24 9:20 10:12 13:21
witnesses 7:9 8:2, 28 9:15 67:16

woman 26:1 46:3,5 50:20

wondered 74:27

Wong 19:14 26:19 32:14,25 64:8

word 39:15

words 38:15 47:21 61:11,14 62:8,10,14

work 27:15 28:20 32:24 55:3 57:27,28 68:12 72:12 75:20 76:11,27 77:3 78:8

working 37:16

works 25:16

worse 32:22

wow 22:15 37:8 55:23

wrap 30:7,23

wraps 39:22

write 34:12 67:25 68:5 69:28 71:23

writing 10:8 14:26

written 10:26 14:24 15:3 37:17 44:28

wrong 20:22 21:22 22:8,19 23:28 24:4,9 26:8,15 33:2 37:20 38:9 42:5 47:26 52:5,19,24 53:1 54:21 56:7,15 59:14,15,16,28 60:19 61:9 63:14 65:2

wrongful 56:1

X

x-ray 61:28 65:4

Y

years 3:20 30:25 49:4, 13 54:6 56:5

yesterday 74:11,12 77:17,21

yield 22:19 40:20,25, 26,27 41:2 54:21